

A Second Letter to the Rev. William Maskell, M.A.

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*** START OF THE PROJECT GUTENBERG EBOOK A SECOND
LETTER TO THE REV. WILLIAM MASKELL, M.A. ***

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A Second Letter
TO THE
REV. WILLIAM MASKELL, M.A.
BY THE
REV. MAYOW WYNELL
MAYOW, M.A.

VICAR OF MARKET LAVINGTON, WILTS, RURAL DEAN, AND
LATE STUDENT OF CHRIST CHURCH, OXFORD.

SOME THOUGHTS ON THE POSITION OF THE CHURCH
OF ENGLAND, AS TO HER DOGMATIC
TEACHING.



LONDON:
WILLIAM PICKERING.
1850.

“Is, then, the Church of England so isolated from the Universal, that the faith of the Church Universal has no influence into its theology?”—*A Letter to the Right Rev. the Lord Bishop of Chichester*, by HENRY EDWARD MANNING, M.A. *Archdeacon of Chichester*, p. 41.

ADVERTISEMENT.

I NEED hardly express my sorrow that the publication of this letter has been delayed so far beyond the time I had calculated upon. But I hope I may be allowed to say, the delay has been occasioned not so much by idleness as by business; and that, chiefly upon subjects akin to those treated of in the letter itself. Still I cannot but be grieved at the delay, both on general grounds, and because during this time, Mr. Maskell has taken the step which would seem to make the letter wholly useless as regards himself. Still my grief would be of a very different and of a deeper character, did I imagine that what I have written would have influenced him to any other conclusion than that to which he has come. Though I fully believe him to have been honest in his seeking an answer to his difficulties, I have not the presumption to suppose that such answer as I have here attempted, would by him have been deemed sufficient. For others who may read this letter, I would only say in justification of even now publishing it, that certainly the subject has lost none of its interest, nor is the necessity for some reply, that I can see, diminished. Therefore, perhaps, I need take up no more time in apologizing for the publication, even though so late.

It may be useful to observe that far the greater part of the manuscript has been written many weeks, though I have not found time earlier to digest it, and correct the proofs, which fact, if borne in mind, may perhaps explain many expressions, not recognizing the altered position in which Mr. Maskell now stands, which certainly I do not think it worth while to correct.

The reader will perceive that I have availed myself largely of portions of Mr. Badeley's speech before the Committee of Council, as well as of other assistance, wherever I found any thing already collected or condensed, which appeared to me useful in the statement of my argument:—my object being, (as I am certain it will be allowed it ought to be) to set this forth in

the most intelligible manner I was able to do, without being careful as to any charge of want of originality or research.

Market Lavington, August 10th, 1850.

LETTER.

MY DEAR MASKELL,

ONE who has known you so long and loved you so well as I have, cannot fail to experience much sorrow of heart in now addressing you. But private sorrows, and private feelings have little place in the great crisis in which we live. I do not mean that we are required to be stoically indifferent; but that our duties to God and God's truth, are so paramount over any regard to earthly ties, or private griefs, that we must needs put them by—so far at least as that they be no hindrance or impediment to the doing His will. Truly, in our time does the cycle of the world's course seem to have come round, and never perhaps since the early days of persecution has there been so much need to remember and apply the warning, "He that loveth father or mother more than me, is not worthy of me." Believe me, I acknowledge fully, and am glad to acknowledge thus openly, that I am as much persuaded you are acting under the constraint of this great law, as that I am desirous to be guided by it myself. I acknowledge your trial (and have good cause to know how severely you have felt it), and I as much believe in your sincerity as I do in my own. I trust, therefore, that never by me at any rate shall your anticipation be realized, when you say, "I am prepared to be judged harshly, and the more harshly by oldest friends." ^[6] Though I do not come to the same conclusions with you, and am about to controvert the general argument of your "Second Letter," I know you will be the first and readiest to do me justice as to the temper in which I write.

Whatever view the world may have taken of that letter, or however it may regard its author, I think few will deny it is well it should have some answer. It is a different thing to say, it were well it had not been written, or, not written by one in this or that circumstance, from saying that *being* written, it does not demand a reply. Persons may and will judge differently, as to the propriety of your having published it, though I dare say, far the

greater part of English Churchmen will be against you in that respect, and say they know not how to reconcile your having done so with either dutifulness or wisdom. For my own part, however, I must say (whatever may be thought of me for saying so) I do not condemn you for having published it; if only you will seek patience to weigh all circumstances indicating the line of duty, before you shall finally act upon the doubts and difficulties it discloses. I confess, to my mind, there is but one justification for any man in the communion of the Church of England, having written and published such a letter; viz.—that, feeling the oppression of the difficulties it sets forth, he is yet *no more than in doubt*, as to the matters debated in it, and the conclusion to be drawn from them. Perhaps in ordinary times even such a frame of mind would not be a sufficient excuse for the unsettling tendency of that which you have written; but certainly these are *not* ordinary times; and, I agree with you in thinking, many ordinary rules do not apply. Enquiries therefore how far the Church of England may have sanctioned error, or failed to teach the whole Catholic truth, pressed even with painful nakedness and pertinacity, must, perchance, now of necessity be instituted, in order “to do her good at her latter end.” At any rate there is a show of reason on *his* side, who says, “If her ‘grievous wound’ be not probed to its full depth, it will never be more than ‘slightly healed;’” and of this argument, I, at any rate, am disposed to allow you the full benefit. Moreover, when it cannot be denied that practically “the trumpet” *has* given “an uncertain sound,” it seems far more “tolerable” to have enquiry pushed even to what some will call the verge of disloyalty, than would be the case if the cause of uncertainty were only in the writer’s mind, and might not, with any plausibility or truth be charged upon the Church herself. Still, after making all due allowance for these disturbing forces, there is, I think, no justification at all for such statements as those in your “Second Letter,” but in the one consideration that the writer is grievously pressed by the difficulties of the case; (“the archers have hit him, and he is sore wounded;”) yet, believing it would be *sin* to let go his hold upon the Church in which his lot has been cast without the most direct and earnest endeavours to ascertain whether his doubts have not an answer, and his difficulties a solution somewhere, he lays them as a duty, and with great pain, though with all plainness, before his brethren of the same communion, that he may rejoice in such answer and such solution if they can be given. Take away this honest motive, and consider the writer’s mind as already

made up, and I see no escape from the reproach of his having written as a traitor: but grant the supposition I have made (and I know, better, I believe, than most men, how safely it may be granted you), and there remains, to my mind, no ground for the invective and reproach with which in some quarters you have been met. ^[8]

You will not misunderstand me, if I say that I approach the task I have undertaken with a certain disquietude, arising from the responsibility I appear to take upon myself, and the consciousness how little qualified I am duly to discharge it. These thoughts have made me feel at times uncertain whether I do well to attempt it at all. Still, as I do not think at present there is any notice of another undertaking it; and as, if there be, my letter will be no hindrance to any one else more worthily occupying the same ground, and as I do seem (to myself at any rate) to have *something* to answer as to the principle on which your difficulties rest, perhaps I better discharge my duty by writing what I *can*, than I should do in withholding my letter, from the knowledge my ability does not reach to the half that I could wish. I trust, however, you will remember, if I have not learning or skill to state the Church of England's argument in the way it may best be stated, that *I* only am responsible; and it is no fair mode of reasoning, to argue, the Church of England can say no more in defence of her position than I may be able to set down for her.

But I proceed to the subject before me.

The drift of your whole second letter appears to me to be summed up in this one sentence towards its close, "I have resigned my cure of souls, because I have no doctrines and no faith to teach, as certainly the faith and doctrines of the English Church." ^[10] Plainly this involves the whole point at issue; for if *you* have none, (I mean as a result not of your own mind, but from the Church's defect,) then of course neither have I, nor has any one of her priests; and if so, we have all, (all, that is to say, who are enough imbued with the spirit of Catholic antiquity to know and feel that we *must* teach as the Church in all ages has taught,) no other line before us but to follow your example in resignation of our cures. And this again is a sentence of deposition to the Church of England altogether; for that Church which drives from her all that is sound and Catholic, and can admit none but such as are more or less heretics to minister at her altars, is manifestly faithless to

her trust, and has forfeited the “good deposit.” She can claim no longer to be a living branch of the true vine; nor can any man believe that she can bear and convey the grace of life-giving sacraments. To ascertain whether indeed this be so with us, is the point to which I purpose presently to direct my argument, endeavouring to show the contrary, inasmuch as I think it may be proved, that where the faith has been directly assailed, as on the subject of Baptism by the late decision of the Privy Council, our business is to clear and vindicate it; and that we have *time*, and I trust also, *means* to do this; whilst upon all other essential subjects, not in like manner attacked, though the Church of England may possibly seem upon some of them more open to objection or assault than upon Baptism, we yet have a rule of Catholic teaching which *is* dogmatic, and *ought* to be received *as such* by every one of us on the very face of the matter, until in any like mode it may be brought into question, when again, as such cause arises, the objection must be met, and the faith vindicated and cleared.

Before, however, I proceed to these positions and the proofs of them, I am anxious to say something on one or two preliminary considerations. And first, I must make an observation on my own former letter, and on the notice taken of it by you, (in the kindest terms, but, as I think, with some little misapprehension of its argument,) in the appendix to your “second letter.” I refer to this, not merely to clear up the misapprehension, which might appear a personal matter hardly worth the time, but also because I think the point will be found to have a further and necessary bearing on my present subject as we proceed. After speaking of my letter as to its tone, you say, “But as it was not intended to be an answer to the facts stated in my first letter, so it seemed to me to fail in meeting the real difficulty of the case.”

^[12] It is quite true it was not intended to be an answer to the *facts*, viz. the positions advanced by you as to the powers of the regal supremacy, and the jurisdiction of the Committee of Privy Council, as a court of appeal. Rather, it admitted the facts, for argument’s sake at any rate, (I did not intend to commit myself, and, I think, did not commit myself to more than this in the way of concession,) in order to show that, even so, the conclusions you drew would not follow legitimately from them. Its aim, therefore was, that even granting the premises to be as you had stated them, as to the authority of the said court, and granting also the judgment (then about to be delivered) to be heretical, still the Church might not be thereby

committed to heresy; and *would not be so*, unless it could be reasonably made manifest that she *intended* such heresy to be permissible; that her *animus* was to include the heresy in her teaching. “Its point was,” (you continue) “that even granting such an ambiguity to exist in our formularies, yet it might have been an inadvertence at the time when our Prayer Book and Articles were put forth, and that we must prove that the Church of England at the Reformation *intended* that there should be such an ambiguity. But this is a line of argument which must admit that which has been so energetically denied to bear upon the question at issue, namely, the opinions of the reformers and divines of the sixteenth century; and it is to be remembered that if such are to be referred to as evidence of the animus of our Church on the subject of Baptism, so they must equally be appealed to upon the doctrines, for example, of the Eucharist and sacramental grace. In short, it is making use of an argument wisely and long repudiated by the High Church party.” [\[13\]](#)

This statement, as I conceive, does not represent the argument of my former letter at all, and therefore is no answer to it. And for this reason it does not represent it; that it confounds together and then unconsciously interchanges, two somewhat similar, but by no means identical propositions, making me answerable for both, whereas to one only of them am I really committed. Observe, it is one thing to say, “It is necessary to take into account the animus of those who sanctioned them, in order to ascertain *the true sense of the documents*,” it is another to say, “It is necessary to do this, in order to determine *the guilt of the Church*.” The first of these propositions I have never maintained at all. The second was the very essence of my argument. I never maintained we were to go to the intentions of the compilers in order to arrive at the meaning of the formularies; but I did say, (and I must venture still to think the argument sound, at any rate not refuted by your remarks,) that we could not condemn our Church of heresy, without considering whether she had ever *intended* to sanction heresy. For (let me say it once more) I was speaking of the animus, not to show the sense of the documents, but to show the guilt or innocence of the Church. The first, as I understand the matter, is the ground “so wisely and long repudiated by the High Church party,” (and which I quite agree in repudiating;) the second, I think is, when fully stated, almost a self-evident truth wheresoever a moral delinquency is to be affirmed. The first view too, would not really have

agreed with my argument; for, I said, “The only postulate I ask is, that the Church shall not, and cannot stand committed to heresy, without proof that her *crime* is something not accidental but wilful and deliberate; something more than a mistake which she is ready and willing to clear up the moment opportunity is given her to do so. In short, that as a man is not a liar without the intention to deceive, so a Church is not heretical, unless the animus of heresy be proved against her.” ^[14a] Neither would this representation of the drift of my argument agree with the particular illustration, of the factory act, by which I tried at some length to make my meaning plain: for certainly I never said, the judges were to have recourse to the animus of the framers of that measure in order to ascertain *its legal sense*, though I did (as I think justly) argue, they who framed or passed it were not to be *convicted of cruelty or double-dealing* because an inadvertent ambiguity might for a time defeat their object. ^[14b] Neither should it be forgotten that ecclesiastical history itself furnishes plain instances of the difference of those two propositions, and I think of the justness of that one which alone I supported. There was a time when the Apostles’ Creed was found insufficient to protect the one Faith, even on the most sacred subject of the true divinity of the Son of God. Arianism crept in, in spite of its wording: and had there been a Judicial Committee of Privy Council to hear the case of Arius, no doubt we should have heard there too, of “charitable interpretations,” and “qualified senses,” and the impropriety of “fixing one meaning upon doubtful words,” and the liberal intention to include as many as possible under an “hypothetical construction.” It might not have been deemed even then, cogent or sufficient merely to appeal to the known sentiments of the framers to arrive at the sense of the document in question: at any rate to have done so, might have been the introduction of a dangerous principle for another day: but surely then, and in all times, it would be a maxim among the faithful, that the Church could not be condemned as guilty of the heresy, (whether of Arius or any other,) even if there were an ambiguity or want of strict definition in her holy words, without considering also whether her animus in her sanction of them had been heretical. The absence of any such suspicion, even had the East and West been then divided, would have prevented any from withdrawing from the communion of the Church at Constantinople at that time, even though she might fail for a brief space to enforce the truth. And this very consideration, as it seems to me, was sufficient to clear the Church’s

faithfulness, during the rise of Arianism, and until the great Council of Nicea could be held. It gave her time to pass what we may call a declaratory act of the true meaning of the Creed, without in the mean time forfeiting her trust. ^[15] There can be no doubt the Nicene Creed was such an act; and I have asked for ourselves only the patience that we may try to procure such a vindication of ourselves and of our faith, now in our day, as to baptism, in our somewhat parallel circumstances. I have endeavoured to enforce only the similar claim so far as this parallel will hold good: viz. not at all the claim to have our formularies interpreted by the known or suspected intentions of their compilers; but merely, not to have our branch of the Church Catholic hastily adjudged guilty of heresy, or of forfeiting her name and place in Christendom, without consideration had of her real guilt or innocence: without weighing the point, whether, even granting it were true (though *I* cannot see it) that her formularies on Baptism are ambiguous, she has ever had the guilty intention of permitting heresy within her. The only claim therefore which I have made, is that she has the right to *time* to throw off the ambiguity, and re-affirm her faith. If she will neither do, nor try to do this, I have all along admitted she will “become bound by the said sentence,” forfeit her claim on our allegiance, and blot out her name from the kingdom of Christ: but she does not appear to me to have done this already, and *our duty* is now to see that she do not. As I have said, I think we have the *time*, and I trust we have the *means*, effectually, though it may be gradually, to vindicate her.

I must cite a few lines more from the next paragraph of your appendix, in order the more directly to mark what I feel called upon to do in this letter more than I attempted in the last. You say (App. p. 86), “I cannot refrain from citing one passage more from Mr. Mayow’s letter. He says: ‘Let me be well understood. If such ambiguity of language can be shown to be intentional on the part of the Church; if she can be proved to have *desired* in drawing up her articles and services to have admitted two interpretations on baptismal regeneration; if her view and plan be to include two such opposite parties within her as those represented by Mr. Gorham and the Bishop of Exeter, by such ambiguous and therefore comprehensive language; I most fully admit she stands convicted of unpalliated heresy both in form and matter.’” On which your observation is, “Instead of *baptismal regeneration* in the above sentence, put *the Eucharist* or *justification*!” This

opens new ground, and I own involves very weighty considerations, most fairly calling for a reply. It is the application of the whole principle of your second letter, the want of dogmatic teaching, to an extension of the subject of my first. You say in fact, "If the Church's animus be sound on baptism, consider whether it is so likewise, on justification and the Eucharist, and then answer as to her condition." Of course in all these cases I conceive you exaggerate the grounds against me, rather, I should say, against the Catholic character of the formularies of our Church, by having imagined I appealed to the opinions of the compilers of our services, in order to ascertain their meaning; but, as I have allowed, nay claimed, that in one respect, i.e. in order to ascertain the Church's *guilt*, such reference to her animus is necessary, I do not think it is a sufficient answer merely to have pointed out the above distinction. A further examination and reply I think is needful, which I propose presently to give.

Here, however, I wish merely to observe, that my former letter did not deal with this extension of the subject; did not go into the general principle of the dogmatic teaching, or want of dogmatic teaching, in the Church of England, because this was not a point embraced or discussed in your first letter; and mine of course was not an answer by anticipation to your second, but merely a brief argument as to the one point of the Catholic doctrine of baptism, and the way in which the (then) expected judgment of the Committee of Privy Council, should it impugn that doctrine, would affect our Church's position: and I think I am justified in saying (even upon your own showing since ^[18]) that *had that point alone* been brought in question, my argument would have been sufficient; at any rate, so far sufficient and satisfactory, that you would have felt with me we might one and all remain at our posts, and that the Church of England would not be involved in the heresy of that sentence, upon the very grounds which I enforced, namely, that her mind and heart were not proved to be unsound, and therefore that we *have time* to strive earnestly to clear her from the ambiguity of her words (so considered), and to vindicate her character for Catholic truth. But it is your feeling, now since enunciated, that there are other points of equal importance less clearly defined; that, in fact, baptism was the very *best* ground for our Church to stand upon in her conflict with the liberalizing spirit of the day; and if she could not maintain herself there, what chance has she elsewhere:—it is this, which supplies the fuel to your

despondency, and almost despair of her. I say again, to this argument I propose to come in the sequel, and would only here explain, what perhaps I ought to have stated, something more definitely, in my former letter, (though it is a point on which I think you will make no quarrel with me for “amending the record,”) that when I say, if “the Church intended to include two such opposite doctrines,” I mean, of course, “*intended to include*” and *did include*. I should not be shaken in my persuasion of her innocency of heresy, either as to baptism, or any other doctrine, merely by being convinced, if so it were, that there was an evil intention of an unlawful comprehension by the Church of England of the sixteenth century, if yet, in God’s mercy, it were frustrated in the actual settlement of her rule of faith. I hold that both parts must combine to place us in a dilemma now, that is to say, both the heretical intention, (so that it is not merely an inadvertence,) and the actual ambiguity, (so that the heresy is permitted). If the latter be not found, she will stand upon her formularies, in God’s providence, enunciating the truth; if the former be not found, then, as I have already said, I think she is not so hastily to be pronounced guilty, as not to be allowed the reasonable time (so she do but begin to use it) to vindicate or re-affirm her faith.

There is a second preliminary matter on which I must likewise ask leave to make some remark before I proceed further. It is obvious that any man’s view of the catholicity of our Church’s mind on baptism, will be much affected by the force he may attribute to the argument, and his general opinion of the soundness of the judgment, of the Privy Council in point of fact. It is true, even one of the Judges themselves might say, “I believe our decision to be the only correct one; the one we were obliged to come to upon the wording of the formularies and articles minutely scanned; but I do not believe it represents the mind of the Church;” and if this were so, (supposing, that is, the words to have this ambiguity really inherent in them, and the Court skilfully to have detected it,) the judgment might be called in this sense “able,” or “probably correct,” as you have called it, ^[20] and yet the whole argument of my former letter still remain intact. But if anywhere it be thought that the late judgment is sound or probably correct as a true representation of the Church’s mind, then in so far is the force of my letter and its argument diminished or destroyed. Of course, just in so much on the other hand, if it be thought or proved that it is not “an able judgment,” or “a

probably correct” one, the position I have maintained is strengthened, because it is, a priori, to a certain extent probable that the *intention* is, as *the sound interpretation* of the words is; and consequently that if the words cannot, without straining them, or an ignorance of their subject-matter be made to include heresy, then the animus of the Church must not be supposed to be heretical. Therefore, although, if upon mere technical grounds of legal construction, the late judgment be “able,” and “probably correct,” my argument remains still, as I think, tenable and sound; yet much more weighty and conclusive is it, if that judgment can be shown to be neither able nor acute, neither well considered, nor fairly apprehensive of the points at issue. On this subject therefore I will ask you to bear with me for a few words.

I am persuaded that such is the case:—that the judgment is not sound; nor able; nor probably right; regarded merely as an exposition of the documents which the court had before it, independently of all consideration of the abstract truth or falsehood of the theology involved. I do not indeed mean to go into this subject at large, or to test the decision throughout in its several parts, but I do desire to direct your attention to two or three particulars, in the hope even these may make you re-consider your verdict as to its being “probably a right decision.” If in that expression you meant “probably right,” not merely on the technical ground of verbal criticism, but as I certainly imagine you mean us to understand, “*right*” according to your present view of the likely aim and intention of those who put forth our articles and formularies, and of the Church of England of the sixteenth century which sanctioned them; “*right*” therefore as to a real intention of leaving baptismal regeneration an open question, then it becomes all the more important to subject some few points of the judgment to a careful scrutiny, that we may see on what foundation such an opinion rests.

In the first place then, we find the following declaration of the judges, presenting their own view of their powers. “The Court,” they tell us, “has no jurisdiction or authority to settle matters of faith:” ^[21] that is, they give us to understand it was by no means its province, and as little its desire, to invade the precincts of the Church’s sanctuary and “determine what ought in any particular to be the doctrine of the Church of England.” ^[22a] Of course the latter part of this sentence is true. Their duty was to declare, (so far as any jurisdiction they had might enable them to declare,) not what *ought* to

be, but what *was* the doctrine of the English Church. If they only meant therefore to say, it was not their business or their wish to enact any new canon on baptism, one is almost tempted to smile at their simplicity in thinking it necessary so solemnly to enunciate such a truism, or thus to magnify themselves upon such moderation and forbearance; but if they thought or meant to disclaim settling any thing concerning doctrine by the powers of interpretation, which they could not avoid exercising, one is tempted again to smile, only more bitterly, to think of any persons, and especially judges in so solemn a cause, entertaining so chimerical a notion as this disclaimer evinces. What! did they imagine they could escape “settling doctrine” by the judgment they gave, merely by leaving every man to teach what he pleased? Did they forget that interpretation itself is a power that settles what it interprets? ^[22b] Did they suppose a translator assigns no sense to the book which he translates? Did they, or could they for a single moment lose sight of the fact, that they *must* “settle” whether Mr. Gorham were to be instituted to the living of Bramford Speke or not; and in so doing must determine that “the doctrine held by him” was, or “was not, contrary or repugnant to the declared doctrine of the Church of England?” One can hardly believe they could lose sight of or misunderstand such a point, and therefore we seem driven rather to let them take refuge in the truism, than chase them into the paradox, however the latter may be the more natural suggestion of their words. But even so, it must I think be allowed that the diction of what ought to have been a most carefully considered document is very clumsily obscure; as is evident from the number of persons since its publication who keep continually quoting upon us those words of the judgment, and assuring us that by the showing and declaration of the Committee of Privy Council itself, “doctrine is not affected.” And this obscurity is darkened even more by the aid of the published comment upon, or perhaps I should say reiteration of, the same view, given since by an eminent member of the court. Lord Campbell in one of his letters to Miss Sellon says, “I assure you we have given no opinion contrary to yours upon the doctrine of baptismal regeneration. *We had no jurisdiction to decide any doctrinal question*, and we studiously abstained from doing so. We were *only called upon to construe the articles and formularies of the Church*, (!) and to say whether they be so framed as to condemn certain opinions expressed by Mr. Gorham.” ^[23] If Lord Campbell individually, or the judges generally, mean merely that their own

personal faith being in agreement or disagreement with Mr. Gorham's opinions, is not a point decided by their sentence, I most entirely allow this; but if they mean, as certainly a large portion of the world has understood them to mean, that to admit Mr. Gorham to a benefice with cure of souls, and to say the doctrine held and published by him is "not contrary or repugnant to the declared doctrine of the Church of England," does not "settle doctrine," so far as that Church's teaching is concerned, (and so far as they have authority,) this certainly strikes me as a most marvellous inaccuracy, bespeaking any thing rather than ability or judicial clearness. Yet if they did not mean this, (though to speak of a matter of personal faith might be in point, as far merely as regarded Lord Campbell's clearing himself with Miss Sellon,) how should their judgment tend, as they seem to have hoped it would, to peace:—"to heal," as Lord Campbell expresses it, ^[24] "the wounds from which the Church of England has lately suffered?" "What hast thou to do with peace," surely we may demand of the judgment itself, unless something real is to be made of this profession of not settling doctrine? By such a mode of writing, the judges appear to have thought peace could be preserved; nothing being settled, but the latitude of interpretation which might, as they supposed, include all, and let every man do "that which was right in his own eyes:"—a scheme that might possibly have answered if the points in question had been mere matters of human opinion, or if there had been none in the Church who believed them to be God's truth which they had no right to give away: none also who were sharp-sighted enough to see that to make any doctrine an open question, is to rule that there is no dogmatic teaching upon it at all. Not to have observed these things more distinctly, and not more distinctly to have expressed themselves as to what they really thought their office was, appears to me, in the very outset, to be *not* indicative of ability or acuteness in the Court.

Secondly, I see no marks of an able view of the subject in the Court's extraction and representation of the peculiarities of Mr. Gorham's opinions. On the contrary, the Committee of Council appear to me (I trust I shall stand excused in speaking very plainly; the matter is of too much importance to permit soft words merely for fashion's sake;) to have been absolutely unable to master the sense of what he wrote. It is so *manifest* they have not accurately represented it, in their summary, that if I *did* think

they really understood his book, I should be *compelled* to believe they knowingly softened down, and *misrepresented* his doctrine, to be able the more easily to pronounce *for* his institution, without daring absolutely to say the Church did not condemn his heresy; that they made his doctrine into something which it is *not*, something, at any rate, less glaringly heretical than it is, in order to satisfy his partizans, by giving judgment in his and their favour, at the same time that they trusted to escape the direct assertion of his real opinions being admissible in the Church of England, by altering them knowingly themselves. But I certainly do not make any such charge against the Committee; only, I have no alternative but to believe they did not rightly apprehend his book at all. They took it, in fact, with many (perhaps not unnatural) complaints, that they should be expected to find out its meaning; ^[27a] and then, even with all the help of counsel, and all the advantage of the really able judgment of the Court below, (which, however, as has been pointed out by the Bishop of Exeter, they appear wholly to have ignored, and thought unworthy of consideration,) they set down sundry propositions as those maintained by him, which not only are *not* in his book, but which do not even represent what *is* in it. Thus they say, “The doctrine held by Mr. Gorham appears to us to be this: . . . that the grace of regeneration does not so necessarily accompany the act of baptism that regeneration invariably takes place in baptism: that the grace may be granted before, in, or after baptism: . . . that infants baptized, and dying before actual sin, are undoubtedly saved, but that in no case is regeneration in baptism unconditional;” ^[27b] statements not found in his answers, though perhaps he may hold some of them; while some of them are actually inconsistent with what he does maintain. Thus, the Committee of Privy Council say, Mr. Gorham holds the grace of regeneration may be granted “before, in, or after baptism,” apparently never having perceived at all his own words, which exclude, as the Bishop of Exeter has most justly pointed out, the possibility, in his (Mr. Gorham’s) real view, of justification *in* baptism, except by a miracle; the miracle of one coming to baptism hypocritically, but being converted at the very moment, and so receiving the benefit concomitantly with the Sacrament. ^[28a] But the Privy Council appear never to have seen, or seeing, not to have weighed, those passages in Mr. Gorham’s answers in which he positively asserts that all the benefits which we ascribe to baptism, through God’s gift and mercy, are given neither *in* nor *by* baptism, but in all cases *before* it, where baptism is rightly received

at all. Thus he says, “That they (i.e. infants) must have been regenerated by an act of grace prevenient to baptism, in order to make them worthy recipients of that Sacrament.” ^[28b] Again, “The new nature must have been possessed by those who receive baptism rightly, and therefore possessed before the seal was affixed.” ^[28c] Again, “As the stipulation of faith goes before baptism, and as the condition of being ‘the child of God’ is a blessing conferred by faith, hence the blessing of adoption also precedes baptism in its essence.” ^[28d] Again, “The blessing is, ‘adoption to be the sons of God;’ that blessing is undoubtedly to be ‘ascribed to God.’ For faith is ‘not of ourselves: it is the gift of God:’ and to such as possess faith, to them giveth He (Jesus Christ) power to become the sons of God. But that faith and that filial state, though clearly to be ‘ascribed to God,’ was given to the worthy recipient (for we are all along assuming this worthiness) *before* baptism, and not *in* baptism” ^[28e] (sic). Again, “As faith must precede beneficial baptism, and as justification is invariably consequent on faith, therefore justification also precedes beneficial baptism, and cannot be equivalent to it.” ^[29] Thus Mr. Gorham, when heard for himself, plainly declares that the gifts of regeneration, adoption, remission of sins, and justification, so far from being ever given to any one *in* baptism, must have been possessed before it, if it be not hurtful; and so far from being ever given *by* baptism, are always given, if given at all, by prevenient grace. I cite these passages here, however, not in the least to argue upon the amount of their error or heresy; but merely to show how very superficially the Committee of Privy Council have regarded them; how very inadequately they have represented them in their summary of Mr. Gorham’s opinions. And I must own here again, I am unable to discover any marks of ability or acumen; of discrimination or accuracy. This unreadiness and slowness to throw their minds into abstruse points of theology, may be very explainable, by considerations of the want of previous training; by the naturally untheological character of their mental habits; and by a certain very imaginable ignorance of the subjects with which they were compelled to deal. These things may be their personal excuse; may show it was, in great measure, their misfortune, and not their fault to err; but yet must necessarily be taken into consideration in determining the moral weight and importance of their judgment.

Thirdly, I am unable to find any acuteness or probable approximation to a right decision in the manner in which the Committee of Council examine, compare, and draw conclusions from the various services of the Church.

And first, as to the burial service:—They say ^[30a]—“In every case in the burial service, as the earth is cast upon the dead body, the priest is directed to say, and doth say, ‘Forasmuch as it hath pleased Almighty God of his great mercy to take unto himself the soul of our dear brother here departed; we therefore commit his body to the ground, earth to earth, ashes to ashes, dust to dust, in sure and certain hope of the resurrection to eternal life;’ and thanks are afterwards given—‘for that it hath pleased Almighty God to deliver this our brother out of the miseries of this sinful world;’ and this is followed by a collect in which it is prayed that ‘when we shall depart this life, we may rest in God, as our hope is that this our brother doth.’ The hope here expressed,” (continues the judgment) “is the same ‘sure and certain hope of the resurrection to eternal life,’ which is stated immediately after the expression—‘it hath pleased Almighty God of his great mercy to take to himself the soul of our brother here departed.’ In this service, therefore, there are absolute expressions implying positive assertions, which must” (the Court tells us) “be construed in a qualified or charitable sense.”

^[30b] Thus it will be seen, not only is “*a hope*” declared to be “an absolute expression implying a positive assertion;” (I thought there was good authority to say that hope, however confident or well founded, is always to be distinguished from, not made identical with, certainty: “Hope that is seen is not hope:”) but even beyond this, the Court seems never to have entertained the notion at all; never to have weighed the matter; never to have grasped the idea; never to have had it occur to their minds, that any one else thought or could think otherwise than they did; never to have supposed it possible, that there *could* be any difference in the *object* of the hope mentioned in these two places; that “the sure and certain hope of the resurrection,” might perhaps mean, the *general resurrection* (a topic not unsuitable to be introduced one would think) whilst the hope of the other passage might be the hope of the individual’s welfare. However, in each place, the Committee of Privy Council unhesitatingly assure us, the hope is *the same*, and *that*, the hope of the individual’s resurrection to eternal life. They are dogmatic enough in their own teaching, in the construction of the service to suit the conclusion to which they are coming (this hope is the

same as the one before-mentioned); but, alas! all this, only in order to make away with dogmatic teaching, of a higher prestige surely than theirs;—to evolve a charitable hypothesis out of the most definite expressions! and these used in a most solemn religious office! Again, I say, and know not how to avoid saying, I cannot see herein the mark of ability or acumen. [\[31\]](#)

Further, it seems as if the judges had never even heard of any other meaning being given to the “thanks, that it hath pleased Almighty God to deliver this our brother out of the miseries of this sinful world,” than that thereby a thanksgiving must be intended that the dead person is taken to heaven. They appear never even for a moment to have entertained the thought that there might be a cause for thankfulness, even in the cutting off of a soul unprepared, if this were the cutting off a life of longer and deeper sin, so that by a further time, the man would only have plunged himself deeper in misery, and have “received greater damnation.” They perhaps had never contemplated such things as possible in the depths of the counsels and mercies of God; never thought of any as being possibly so past salvation, that the only remaining mercy which could be shown them was to cut short a life whose daily continuance was an increase of crime; whose daily walk a progress, farther and farther into the wrath of God. Yet had Lord Campbell been as well read in another great poet, as he seems to have been in Milton, he might perhaps have been reminded of these things:—

“The longer life, I wot, the greater sin;
The greater sin, the greater punishment:
All those great battles which thou boast’st to win,
Through strife and bloodshed and avengement,
Now prais’d, hereafter dear thou shalt repent:
For life must life, and blood must blood repay.
Is not enough thy evil life forespent?
For he that once hath missed the right way,
The further he doth go, the further he doth stray!” [\[32\]](#)

God forbid, indeed, that we should say this of a man, because he “once hath missed the right way;” (nor is Spenser answerable as implying that doctrine, as the context will show:) but at least the thought is suggested which might have assisted the Committee of Council in considering whether there may not be a time when it will be lawful and reasonable to give thanks to God, if

the removal of a man unprepared, has yet removed him from only fresh sins, and saved a soul from greater punishment. Neither, let it be observed, is it in the least necessary to this view to suppose that we are either called upon, or able, to determine *who* among the departed have so fallen past grace, that an immediate death was the only mercy left for them. It is sufficient that such an explanation can be given, if perplexity should appear to be involved in the fact that for every one for whom our burial service is used, thanks are given “that it hath pleased Almighty God to take unto himself,” or “to deliver, this our brother out of the miseries of this sinful world.” [\[34a\]](#)

Again: there is the treatment of the service for private baptism. In one or two respects this service is unquestionably stronger in its wording than the office for public baptism, as to regeneration being the gift of baptism, which made a careful examination of it very important. Let us therefore see how the Committee of Privy Council have dealt with it.

In the certificate of the due baptism of children privately baptized, when brought to be received into the Church, (and Sir H. J. Fust has very properly pointed out that “this is not the certificate of the minister,” (who had baptized the child,) “but the certificate of the Church” (to the congregation) “founded upon the answers given as to what had been done;” [\[34b\]](#) in this certificate,) it is stated that the child, having been “born in original sin, and in the wrath of God, is now, BY THE LAVER OF REGENERATION IN BAPTISM, received into the number of the children of God, and heirs of everlasting life; for our Lord Jesus Christ doth not deny his grace and mercy unto such infants, but most lovingly doth call them unto Him;” [\[34c\]](#) and in the further part of his office, where the priest is directed to declare what benefits that child hath received, and how received them, the words are, “Seeing now, dearly beloved brethren, that this *child is by BAPTISM regenerate, and grafted into the body of Christ’s Church;*” [\[35a\]](#) where, in the corresponding place in the public office, the two words, “*by baptism*” do not occur. Mr. Badeley had drawn especial attention to this point; and had most aptly explained why they are introduced in the private office, and omitted in the public. “Omitted, (he says) not being necessary there, where the rite was being administered.” [\[35b\]](#) The Church does not seem to have contemplated any judicial-committee-hypothesis to separate the benefits mentioned, from the whole service in which their mention occurs; nor to have provided any

safeguard against eyes prying curiously into the point, whether, though all these benefits are declared to be given in the very office for the ministration of public baptism, yet, perhaps, it might not be “*by baptism*” after all. But in the office for private baptism, the very words, “*by baptism*,” do occur; “important here, (as Mr. Badeley continued,) that the regeneration might be exclusively referred to the *previous administration in private*,” that no one might be under any possible doubt that it was by no rite or ceremony of admission into the congregation, by nothing else but by baptism itself, before administered, that the child became partaker of all the privileges of a Christian.

I wish to draw out this point a little further, because it seems to me to bear much upon the ability of the judgment. That judgment acknowledges (as it cannot help doing) that the office for private baptism provides for “a baptism which may have taken place without any prayer for grace, or any sponsors,” ^[36a] but it deals with it “as exceptional,” as “intended only for cases of emergency;” and seems to put by the argument to be drawn from it as nothing worth upon that ground. But is it intended by this that the benefits of baptism, whatever they be, are not given in cases of emergency, as well as in cases of leisure? Is it meant by the judicial committee that the effects are different, the blessings less full, the statements less to be relied upon, as to what is given the child and *how* given, in one case than in the other? It almost seems as if they thought so. “The private baptism of infants (they tell us) is an exceptional case provided for an emergency, and for which, if the emergency passes away, although there is to be no repetition of the baptism, a full service is provided.” ^[36b] I do believe, if the rubric had not been absolutely too strong for them, (“Let them not doubt but that the child so baptized is lawfully and sufficiently baptized, and ought not to be baptized again;”) that they would have wished well to the idea of some further baptism than this “exceptional” proceeding, and (I say, *but* for this rubric,) would have tried to make out there *was* some completion of the sacrament in the latter part of the office used when the child is brought into the Church, that the congregation may be certified respecting the baptism. Nay, one almost wonders they have not done so as it is: for surely there might have been found as much implication, that there is ground for doubt in the words, “Let them *not* doubt;” as there can be for the “amazing” assertion in another place, that the very earnestness of the prayers of the

Church afford an argument “for thinking that they are not uniformly granted.” Why should we pray (is the argument of the judges, ^[37a]) “for that which God has promised to give unconditionally.” “Those who are strongly impressed with the earnest prayers which are offered for the divine blessing and the grace of God, may not unreasonably suppose that the grace is not necessarily tied to the rite, but that it ought to be earnestly and devoutly prayed for, in order *that it may* THEN, OR WHEN GOD PLEASES, be present to make the rite beneficial.” ^[37b] Such is absolutely a part of the actual judgment delivered by this court, sitting as a solemn court of appeal, to weigh and determine the force of words, and to draw necessary consequences from them. Surely they might equally have argued, “Those who need to be instructed ‘*not to doubt*,’ may not unreasonably suppose that there must be *some* ground for *doubt*, or else why should they be thus cautioned;” and so make a reason out of the very rubric in question for supposing a child baptized with this “exceptional” baptism, is *not* thereby “lawfully and sufficiently baptized.”

And in truth the Judicial Committee do seem to come very near to believing, if they do not actually believe, that something more *is* essential to baptism than the form appointed in the private office, provides, for they tell us, “Any other conclusion” (than that the promises of the sureties are implied,) “would be an argument to prove that none but the imperfect and incomplete ceremony allowed in the exceptional *case would be necessary in any case*” (sic.) This looks as if they had no notion of what are the essentials of baptism at all, and then it appears they use their ignorance as *an argument, a fortiori*, to establish their heretical conclusion. They are ignorant that “nothing more is necessary in any case,” and therefore they deem the benefits do not come to the child in and by baptism. I cannot call this able or acute; quite independently of all view as to the truth or falsehood of the conclusion they arrive at.

But still further on this very point; consider how sharp-sighted they have been to see that the words “by baptism,” do not occur in another place. “It is certain by God’s word, that children which are baptized, dying before they commit actual sin, are undoubtedly saved.” Yes! (says the Court) saved no doubt—Mr. Gorham does not deny it—by prevenient grace; (which their death, he thinks, proves them to have had; though this too seems rather a charitable construction than anything else; founded, so far as

I see, “upon no sure warranty” of either “Scripture,” or the Church’s teaching;) *saved*, however, again says the Court, but not *by baptism*. “This Rubric does not, like the article of 1536, say that such children are saved *by baptism*.” ^[38] Thus sharp-sighted are they to see what makes for the side they advocate (no one can feel it to be too strong a word); whilst all notice of the very same words occurring where they might be difficult to construe in the same sense is entirely omitted. “Seeing, dearly beloved brethren” (says the office for private baptism), “that this child *is by baptism* regenerate.” Here there is surely a plain statement how, and when it is, the regeneration takes place. But the words do not occur in the public office; and so they are ignored apparently as being “exceptional,” as if they could mean nothing. Let us see, carefully, what this amounts to, if pursued and followed out. Instead of taking Mr. Badeley’s most reasonable argument into consideration, that the thing intended is exactly the same in each case, only it was too plain to require to be stated that the regeneration was *by baptism* in the public office, when the declaration “seeing this child is regenerate” is made in the very midst of the celebration, immediately upon the administration of the sacrament; but that it *was* stated in the other service to prevent all doubtfulness as to *when*, and *by what means*, the regeneration was given to the child;—instead, therefore, of interpreting the one office by the other; instead of saying we must suppose regeneration, and grafting into the body of Christ to be the same, and attained by the same means in each case, the Court appears to have said simply, we will ignore the office which is most express, as an “exceptional case,” and proceed upon the wording of the other only. But see, yet again, what this amounts to; it is declaring that there is a difference of the gift in these different baptisms. Take ten children baptized privately, who have lived to be brought to church, and ten baptized publicly, and of the first ten you will have it said by the Church that they are “*by baptism regenerate*,” of the others that they are regenerate—but, according to the Gorham phraseology—by prevenient grace, and *not* by baptism; or, by the Privy Council’s exposition of this (not exactly a correct one, however), “taking place either before, in, or after baptism.” Is any man in his senses expected to believe such a mode of interpretation to be sound and true; or the way to make the Church’s services agree together; or that it is a due application of the principle to let the services explain each other, as would be the case in any and all ordinary legal documents. Why! according to this rule, the right and

blessed thing for parents to do, would be, *not* to bring their children to church to be baptized as soon as they *can*; *not* to give any heed to the exhortation of “the curate of every parish, often admonishing the people that they defer not the baptism of their children longer than the first or second Sunday next after their birth, or other holy-day falling between unless upon a great and reasonable cause;” ^[40] but in every possible case to *defer* the baptism, till the children may be sick, and then procure them to be baptized privately. *Then* will they have the Church’s assurance that “their infants are *by baptism regenerate*, and grafted into the body of Christ;”—then will they make the exception the rule, and take all advantage of the “exceptional case;”—then may they feel that knowing *when* the regeneration took place, they may be sure it *has* taken place;—but if they be obedient and faithful to the Church’s exhortation; and bring their infants soon to church to be baptised, then indeed, according to the Gorham theology, and the Privy Council’s judgment upon it, then will they have no knowledge whether “remission of their sins by spiritual regeneration” hath come to their babes at all, every thing being dependent upon the prevenient grace, which no one pretends is given to all infants; and though, (it is said,) to some, yet no one can pretend to say, to which!

The Privy Council, although this point of the force of the words “*regenerate by baptism*” in the office for private ministration, was pressed upon them by Mr. Badeley, take no notice at all of it I think in their judgment; merging all they had to say on the subject of that office in “its being exceptional,” and “intended for an emergency.” I cannot deem this clear-sighted and acute. If I thought it so, I could not by any compulsion think it honest. I do not impugn their honesty; but they must (and will *find* they must in time) take the world’s verdict as to the ability of such reasoning.

One other passage I must briefly notice: “The whole Catechism” (the court tells us) “requires a charitable construction, *such as must be given* to the expression, ‘God the Holy Ghost who sanctifieth me, and all the elect people of God.’” Thus it is evident the Judicial Committee have lived so out of all theological training and the commonest catechetical instruction, that it has never occurred to them this passage can have a literal meaning. They seem never to have heard or dreamed of such a thing as “the elect people of God” being, *the baptized*; never to have supposed that the words “GOD THE HOLY GHOST *who sanctifieth*,” might be descriptive of the *office* of

the HOLY SPIRIT, and mean (surely an easy and natural sense enough) who is *the Sanctifier of*; never, consequently, to have considered the possibility that the intention of the whole passage might be (and be thus literally true), that it is *God the Holy Ghost who is the Sanctifier of the baptized*, at their baptism at any rate, although such persons may no doubt afterwards fall away, grieve or quench him, and drive him from them. ^[42] Again I say, they use their own ignorance on a point upon which any catechumen might have taught them better, as a cumulative argument to explain the whole Catechism in an hypothetical and unreal sense, such as they tell us *must* be given to these words. Truly, if, like the boy in the tale, the Court had expressed their thankfulness for their ignorance, (and it is, I fear, their best friend as to many parts of this decision's merits,) one would be tempted to agree with the response there given, that they "have a great deal undoubtedly for which to be thankful."

I do not think, then, I could call this document, put forth to the world after so long a preparation, and known by the court itself to be of so much importance, a clever paper, even if looked upon merely as the exercise of an advocate, desired to make up a judgment upon a "foregone conclusion." But assuredly this is *one thing*; to be an able judicial document is *another*:—another and so different a thing, that I presume there will be little dispute, whether among lawyers, or any men of sense, that for a judicial document to be (*if it be*) *but* the subtil, ingenious effort of a partisan, is so far from even faint praise, that it is the most disastrous imputation which could rest upon a judge's character, to have been a party in any such transaction as the framing it. I cannot either call it talent of any high character, to see all that makes *for* one view, and nothing that makes *against* it. I cannot praise *that* discrimination which is only great at finding a solution to one-sided difficulties. I cannot consider these as the marks of an able judge, however they may be the natural characteristics or proceedings of an advocate or partizan. Yet let me explain;—even so, I do not say a partizan is by any means necessarily a dishonest man. The habit of being biassed by what we much wish, is as natural as, in some cases, to forecast what we much fear. It works even unconsciously to ourselves, and is not inconsistent with the most upright intention, nay, sometimes, not with the most earnest endeavour after truth. But certainly *he* only is to be called a great judge who can master this habit; whose mental discipline is such, that he can abstract

himself from these circumstances of his wishes, and in spite of all the promptings of his heart, preserve the coolness of his head; who can divest himself, when he takes his place on his judicial throne, almost of his personal existence, and pass judgment as if the world would end to-morrow. The calculation of consequences; the being guided by what shall make most for peace, or any other desiderated end, is one of the snares to be most carefully shunned by any man who would occupy a distinguished place in the temple of justice. *He* has no pretence to stand upon the roll of fame, as eminent in his calling as a judge, whose eyes wander into the future, whose mind is pondering the consequences which may ensue. Such an one shows manifestly that he is unable to separate his judgment from his advocacy; his judicial character from the wishes and bias of his mind; and therefore, though a very honest man it may be, still that he is deficient in the first of all the qualities necessary to form a great judicial character, or secure a lasting judicial name.

I do not say, in saying these things, that Lords Campbell and Langdale, Mr. Pemberton Leigh, Dr. Lushington, and Mr. Baron Parke were consciously one-sided in the judgment they delivered: but I do say, it appears to me, and I believe it will appear to posterity, when all these things shall be matters of unimpassioned historic reference, that whatever their judgment in the case of *Gorham v. the Bishop of Exeter* may be as to its uprightness, they lose caste as to ability, by its delivery. They lose, and will lose caste, if only from the fact that they were not able to see, to remember, to combine, to take count of various matters (some of which I have just noticed) bearing upon the very documents, (the great things as they themselves allow by which they were to be guided,) and essential to a fair decision; and this moreover when those very points had been distinctly pressed upon their attention. They deviated likewise, I believe, from all the ordinary rules of courts of appeal, in ignoring, instead of examining, the judgment of the court from which the appeal came up, the decision of which they were about to reverse. Many will be the hearts that will grieve over these things as time goes on, first, generally, on the ground of the dissatisfaction and distrust which such proceedings cast upon the character of the administration of our law; but next also, on the narrower though hardly less painful ground, of seeing men who might have stood so high, losing their position in the world's history, by the too sensitive desire to do the things

which, as they imagine, make for peace, rather than boldly daring to adopt the divine motto, “Be just, and fear not.”

To say nothing of others, how many will think remorsefully of the deed done which cannot now be undone, when they find (as find I am sure they will) that this judgment has struck down from the pedestal of honour where he might perchance have stood with few equal and none superior to him, one, whose name as a lawyer was promising to fill the world. That learned Baron’s name might perhaps have descended to posterity, coupled with the very greatest of the judicial names this country has ever boasted; but now, (sorrowfully will many hearts attest it,) in spite of all the blind flattery of party feeling, and all attempts to patch the matter up or smooth it over by party declamation; now;—*for* and *by* this Gorham judgment, will he fall from that pre-eminence, and be found, to those highest honours, to have forfeited his claim.

Before I leave this part of my subject there is one further remark I must needs make. This is not the first time that the people of this country have had cause to look with suspicion upon the administration of the law, where the interests of the Church have been affected. There is, I think, a growing feeling in the world, that, (it may be unadvisedly and unconsciously in those concerned, still really and practically,) the Church does not meet with exactly the same measure which would be dealt out in mere legal construction of documents to a railway company or a merchant’s clerk. When in the year 1848, in the Hampden case, the Lord Chief Justice of the Queen’s Bench of that day reversed the unvarying practice of his court for 250 years: ^[46] (if I am mistaken in the fact, no doubt I shall be corrected,) when Lord Denman nullified in that case (and expressly from a *regard to consequences*;—his own reason, as stated by himself in his judgment;—) so general and so just a practice as that when the judges are divided equally in opinion, “the writ should go,” to give opportunity for further argument, and consideration by a higher court (that a writ of error, I believe it is termed, may lie), he did a thing so pernicious, that Englishmen may well be grieved he should ever have held so high an office. To throw suspicion on the fountains of justice is among the greatest wrongs any man can inflict upon his country. It is high treason against the majesty of law. It is a teaching of rebellion to all who have the wit to understand what has been done. It substitutes distrust even in the rightfully condemned, for the general and

generous confidence even of him who may think or know, in his own case, the law has erred. Let such a persuasion grow but a little, and we shall find no more instances of the spirit of him who said

I had my trial
And must needs say a noble one: . . .
The law I bear no malice for my death,
It has done, upon the premises, but justice;

whilst “every puny whipster” who thinks himself aggrieved, will only proclaim “with outstretched throat,” the impossibility of obtaining equal justice, and the corruption of the law. No man can doubt it is the paramount duty of those concerned in its administration to “abstain from all appearance” of this “evil,” and give no possible colour to its existence. In truth, so sacred is the subject I have here handled, that nothing but the most weighty considerations should induce us to mention at all the circumstance of so just a rule having ever been disregarded. These however do exist in reference to the present matter; and where the question at issue is the preservation of the true faith in our branch of the Church of Christ, we dare not omit the notice of any of the dangers which beset it. We dare not, for peace’ sake, or for the sake of a worldly expediency, “keep silence.” We dare not, for fear of casting an imputation (not, observe, a vague one, but supported by fact and testimony) on the administration of human law, run the risk of its being cast upon the truth of God, and the Church of Christ. Much have these things pressed upon me, in reference to our present state, and future prospects: and many times have I weighed them before venturing thus to bring my thoughts to light. “My heart was hot within me, and while I was thus musing, the fire kindled, and at the last I spake with my tongue.”

[\[48\]](#)

But it is more than time that I turn from these, however very important, yet somewhat preliminary considerations, to the more direct purport of your letter, and to the answer I may be able to give to the charge contained in it. What this is, your title-page sufficiently declares: “The want of dogmatic teaching in the reformed Church of England:” and my answer is plain and simple: such as you will not quarrel with for want of distinctness and pertinency, if only I sustain it. I join issue as to the fact. I maintain we *have* a rule of dogmatic teaching in our Church’s constitution on all those

points on which it is essential a Church should have it. I think, in and by God's good providence over us, (and if it be so, you will yourself allow it is a most singular mark of his gracious favour towards us,) this has been preserved as to what we *ought* to teach, though I acknowledge in practice and in fact, we fall lamentably short of teaching, and our people of believing according to it. I imagine, however, you will not charge it as any conclusive argument against the catholicity of either ourselves, or any branch of the Church of Christ, that gross and frequent cases of practical short-comings may be adduced, if it can nevertheless be shown, that the Church's rule requires what is right, and, rightly understood, dogmatically inculcates it.

You may be curious to learn upon what basis I think myself able to sustain so direct a challenge to the whole principle and bearing of your second letter; and, strange to say, I know no one, whose words so aptly enunciate, and give expression to my argument as your own. You will think, I doubt not you have disarmed the quotation I am about to make, (which by this time you anticipate,) by having already brought it forward yourself, and stated you can no longer rely upon it. But you must excuse me for not so easily parting with it, and for endeavouring to prove you right in your earlier view, even against your own subsequent change of mind. "It is a miserable matter," (you say, after having given various authorities among our ritualists to confirm your view of absolution,) "it is a miserable matter merely to be able to escape from condemnation. I am not content to think the interpretation which I insist upon is but one of many which *may* or *may not*, according to individual caprice or individual ignorance be held without rebuke by our people, and taught by our clergy. If any one of the above theories is the true one, all the rest are false. And are we for ever to remain disputing? Is there no voice by which we may learn the truth? I believe that there is a voice, long neglected and long forgotten, the voice of the Church of England. Let us listen to her teaching, and we shall find that now, as of old, by the great grace of God, she does not speak with a doubting or hesitating tongue." [\[50\]](#)

This was your opinion at the close of the year 1848, and this is what I still claim. I am prepared, even against yourself, to maintain, and I believe I can shew, its soundness. Do not suppose that I dream of quoting this or a further passage which I shall have occasion to extract presently, merely in

order to show a discrepancy between what you asserted then, and what you hold now. I do not desire to cavil with your right to be inconsistent in search of truth, if that were all; and I must allow besides such things have “come to pass in these our days,” between then and now, as may much diminish our surprise at inconsistency or change of mind in any one. At any rate, it would be, I am well aware, a most idle task to endeavour to prove *my* position in favour of the dogmatic teaching of the Church of England, merely by convicting you or any man of inconsistency, and showing that what you think and say now is different from what you thought and said a year and a half ago. In all truth this is not my object; but I cite these passages, because I know not how better, nay, not how so well to express my own meaning; that I may also comment a little upon the passages I cite, and your reasons for thinking the position they take up no longer tenable; and that in so doing I may add a few words beyond what you said even in 1848, for believing in their soundness. Let me turn to your words. You say, “Here though open to the charge of repetition, I must again lay down the principle upon which alone we can possibly decide what the judgment of the Church of England really is; and to which principle we are bound to bring for proof as to a test every doctrine which we assert or deny.”

Then this principle follows, most clearly enunciated:—

“We declare, therefore, that the Church of England now holds, teaches, and insists upon, all things whether of belief or practice, which she held, taught and insisted on before the year 1540, unless she has since that time, plainly, openly and dogmatically asserted the contrary. This we declare in general. And in particular, as regards that most important question, the right interpretation of the various services in our Common Prayer Book, we further add: that whatsoever we find handed down from the earlier rituals of the Church of England, and neither limited nor extended in its meaning by any subsequent canon or article, must be understood to signify (upon the one) hand fully and entirely all, and (on the other hand) no more than it signified before the revision of the ritual.” [\[51\]](#)

* * * * *

“Few persons will deny that the existence of a doctrine known, acknowledged, and taught in the Church of England at the beginning of the sixteenth century, coupled with the fact that no reformation or alteration of that doctrine has at any time since been made—and therefore that it was intended to be still known, acknowledged and taught, is strong evidence by itself that such a doctrine must be true. The obligation to enquire accurately into it, and if possible overthrow it, is in the first place, upon the shoulders of those who are inclined to doubt or to dispute. It will then be for us to see if it can be defended. One thing only I am bound to say before I pass on. And it is this: that, equally on this matter of absolution, as upon all other essential portions of the One Faith once delivered to the saints, I believe that the Church of England holds the true and complete doctrine of the holy gospel, and follows in her practice of it, the example of the primitive age. Our Church now claims, in right of her succession, all the ordinary powers and privileges which the Apostles received from their and her Almighty Lord; now offers to her children all the means whether in aid of, or as being necessary to, the salvation of each one which were offered from the beginning; and now, as of old and ever, either insists upon the reception, or entreatingly urges the acceptance, according to their various nature, of all and every of those means of grace.” ^[52]

I think I am justified in saying that you admit yourself, by inference, in your second letter, that if the principle of these passages can still be sustained, the case and position of the Church of England will be tenable against the charge of being without necessary dogmatic teaching. But you explain in your recent letter that you feel you must give up the soundness of these views; that you cannot now believe the same things concerning our Church’s rule of faith. Let me give this comment in your own words:—

“Here, very probably, some one may object against me my own language, published rather more than a year ago. I allude to my book on the doctrine of absolution. Let me quote it.” Then follows the quotation I have already made as to our Church retaining the teaching she held previous to 1540, except where expressly repealed; upon which you add: “When that passage was written, it was written in entire assurance that every word might be established. I do not think so now. And with whatever pain I say this, it is

not because my belief has altered from accepting the fixed principle that all essential Christian truth is one and eternal; and that every part of the Church-Catholic is bound of necessity to hold it whole and undefiled. Believing, as at that time I did, with the strongest confidence and trust that the Church of England was a living and a sound portion of the one holy Catholic Church, *I could not but assert*, as being capable of undeniable proof, her claims to teach authoritatively and undeniably every single doctrine of the Catholic faith. If I searched into her foundations it was with no shadow of fear lest they should be seen not to be resting on the rock, but much rather in the undoubting hope that the more she was tested and examined the more triumphantly she would declare herself to be divine.

“If the end of long enquiry and consideration has resulted in disappointed hope, and what seems to be evidence of the fallacy of former expectations; if I am compelled to own that the utmost we are justified in declaring seems to be—not that the Church of England now ‘holds and teaches’ &c., but—that the Church of England how *suffers* and *permits* to be held and taught; and again, as to the right interpretation of the prayer book, not ‘*must* be understood,’ but ‘*may* be understood:’ let none suppose that I have lightly yielded up that ground upon which alone a minister of the Church of England, as a minister of the Church Catholic, can stand securely.” [\[54\]](#)

Now, the first observation which hereupon occurs is this:—you state you can no longer think that ground tenable; but you do not sufficiently give a reason why you thus change your mind. I do not say you give *no* reason, because I suppose we are to take the whole of your second letter, as in fact the reason; but I mean, you do not go into the particulars of the matter, nor in detail state the grounds why you should think the Church of England does not still appeal to her doctrine before the year 1540, wherever unrepealed, to supply the defect or short comings (if any) of her later teaching. You seem to have condemned her on her *practical* or *external* deficiencies, not as going into and proving her to have changed her internal rule. Indeed, it seems to me you have hardly weighed at all, either in asserting or denying the principle you formerly maintained and now yield up, the external evidence for its truth. This, perhaps, was originally not an unnatural omission, since you held the view co-ordinately with, and as an essential part of, your belief in the Catholicity of the English Church, not as a proof of it, nor as an answer to objections. You then so unhesitatingly

believed the Church of England to be “a living and sound portion of the one holy Catholic Church,” (and were not engaged in *proving* any thing about this at that time, your argument quite allowing you to assume it;) that, as you say, “*you could not but assert* her claims to teach authoritatively and undeniably every single doctrine of the Catholic faith.” It followed directly as a natural and necessary consequence from the position you assigned her, that she *must* be able so to teach; and, I repeat, you had no need to do more than assume it, because none of those with whom you were arguing, denied it; and your point was to show what followed from this unquestioned statement as to the particular doctrine you were then treating of, not to give the proofs of it in detail, if at all. That the Church of England was a true and living branch of the Church Catholic was therefore your premiss: that she taught necessarily the one essential Christian truth, all necessary dogmatic teaching, was your natural and just inference. And to show what this Christian truth was on absolution, you referred to the prior teaching of the Church of England, and of the Church Catholic as received by her before the reformation. But no wonder, when upon other grounds your premiss was shaken, the truth (as *I* still believe it) of the inference was shaken also in your mind. It could not be its own proof. If you are no longer certain the Church of England is a true and living branch, you lose *your* evidence, I mean the evidence adduced by you in that treatise, and on which you were then resting, that she embraces all necessary dogmatic teaching. But if *I* can shew by plain reasoning in the nature of things, or by external proof, without first assuming her Catholicity, that she *has* this rule of faith; that she is linked up to, and holds on by, the whole of her teaching previous to the reformation, except where she has “plainly, openly, and dogmatically asserted the contrary,” I shall have just so much proof to give that she does not fail in point of dogmatic teaching, and therefore so far an answer to your difficulty and your enquiry, “What am I to teach as the faith and doctrines of the English Church?” If by this process I can make it reasonably clear that, “by the great grace of God,” the Church of England has had preserved to her a strict rule by which she does teach the whole Catholic faith, then shall I meet all the objection of your recent letter, so far as *principle* is concerned, and sustain, as *my* conclusion, what was *your* premiss, that (in so far, at any rate, as her dogmatic teaching is concerned,) we have no right to doubt her claims; but that she is still what you so

unhesitatingly believed her to be in 1848, a living portion (though it may be now a wounded one) of the one holy Catholic Church.

You have touched upon, though without entering into proofs to sustain it, (which as I have said before, your argument did not there require,) the principle by which the said dogmatic rule is to be established; viz. “the Church of England now holds and insists upon all things, whether of belief or practice, which she held, taught, and insisted upon before the year 1540, unless she has since that time plainly, openly, and dogmatically asserted the contrary.” . . . Again:—“Whatsoever we find handed down from the earlier rituals of the Church of England, and neither limited nor extended in its meaning by any subsequent canon or article, must be understood to signify (on the one hand) fully and entirely all, and (on the other hand) no more than it signified before the revision of the ritual.”

You do not say precisely *why it must* be so received, unless we are to understand (a position with which I make no quarrel) that common sense and the nature of things declare it to be a self-evident truth, immediately the proposition is announced. But I venture to think, beyond this strong support it has other and more particular evidence, and so rests altogether upon a much wider basis than is overthrown by the general and sweeping rejection of it in your assertion, that you do not now think it tenable. It appears to me in the first place, as I have said, to rest on principles of reason and common sense, and next to admit of particular proof, that the Church of England does retain such teaching.

Let me ask you to examine with attention the evidence I am about to adduce. I would arrange it under the following heads:—

I. Common sense, and the nature of things.

II. Appeals of our Church to antiquity, and the teaching of the Church universal, as well as to her own previous constitutions and canons.

III. Recognition of such previous teaching by the civil power; if not proving the same point positively, yet at least shewing negatively that it is not contradicted.

IV. Some confirmation of the above view from considerations of what the Church of England would deprive herself of, (which no one has ever

supposed her to have done) if the principle were to be carried out that her existence is to be dated from the sixteenth century only; and nothing to belong to her rule of faith but what was then determined, and in words set down.

I. Surely it is most certain on grounds of abstract reason and common sense, that things will stand as they are, if they neither fall to decay of themselves, nor are altered by any external power. No one pretends that the dogmatic teaching of a Church will fall to decay of itself. The other alternative, therefore, is all we have here to consider. I say then that, of any building, what you do not destroy, remains. You find such or such a fabric standing. It is, in your opinion, out of repair, or deformed with unnatural or unsightly excrescences, which in process of time have overgrown, or been engrafted upon it. Additions you may conceive them to be to the original structure, and now, injurious or inconvenient. You resolve that these, whether accidental or evilly contrived, shall be removed, and you address yourself to the task. Surely, your own principle in 1848, that what is not removed, remains, is most sound: I know not how to consider it less than axiomatically true. If a tower be taken down here, or a turret there, a window blocked up on this side, or a door opened in that, still the foundations remain the same as ever, unless you absolutely root them up. The basis of the building, except in such case, cannot be imagined to be moved, and just so much of the superstructure as you do not throw down, must stand as heretofore. It may be obscured by something else; it may be much less noticed, or noticeable, than it has been; it may be disregarded in the public eye; one whole side of the building may be clothed in shadow, but yet, if not destroyed, there it will remain, and remain as an integral part of the building to sustain its uses, and to be claimed for them when need is by the owner of the whole, and by his servants at his bidding. And so in that “city set on a hill,” her foundations are the same for ever; and, unless the Church of England at the reformation destroyed the foundations;—save where she may have “plainly and openly” pulled down any thing which had before-time been built up;—that which was laid, and that which was built remains, and is our heritage at this very day. So great is the absolute and essential difference between FORMATION and REFORMATION, and such the argument in favour of your principle in 1848, from abstract reason and the nature of things! [\[59a\]](#)

But further, we are not without an abundance of external proof, if I may so call it, besides this common sense reasoning, shewing that the Church of England at the reformation, if we gather her intentions not from opinions of individual reformers, but from her own authoritative acts, did not mean to adopt a wide and indiscriminate destruction of her previous teaching, and *did* mean to keep all that she did not mark to be destroyed. This point was the foundation of a large part of the most learned and able argument of Mr. Badeley before the Committee of Privy Council, by which he asserted, and as it seems to me, proved (although the Court appears to have taken absolutely no notice at all of this part of his speech) the certain and positive connection of the Church of England with the previous Church in this country, and with the Church universal, and this, not only by the links of the same apostolical succession, but in the maintenance of a connected doctrine. And the general principle as to antiquity, and the sense of the Church precedent to the reformation, which Mr. Badeley laid down expressly with a view to the matter of the suit in which he was engaged, and in order to apply it immediately to baptism; that same principle, be it observed, is applicable in exactly the same way, and the same fulness to every other article of the faith, unless any where it can be shown that the Church of England at the reformation did “plainly, openly, and dogmatically contradict it.” It would therefore be very much to my present purpose to cite here nearly the whole of this part of Mr. Badeley’s speech, but as you know it well, and can easily refer to it, I shall but extract a few of the more important passages, where the proofs of this principle being the rule of the English Church are given.

“I shall next appeal” Mr. Badeley says, “to antiquity in order to shew more fully that this doctrine for which I contend,” (of course the immediate doctrine which Mr. Badeley had in view, was baptismal regeneration: but his argument reaches, as I have just said, to the full purpose for which I cite it;) “has always been, and must necessarily still be, the doctrine of the Church of England. * * * If there can be any doubt at all about the sense and meaning of our Church, if it can be supposed by any criticism or minute construction, that these Articles and Formularies do leave any question open—do omit in any degree to declare with certainty the doctrine of the Church, resort must be had not to the writings of the reformers, not to the opinions of any

individuals, however respectable they may have been; the only appeal can be to the early Church, and the doctrines which that Church professed. That is indisputably the standard to which we are referred, not only by our Prayer Book and our Homilies, but by those who took the most prominent part in the reformation in this country, and it is natural that this should be so, because what was in fact the reformation, and what its object? My friend, Mr. Turner, the other day, spoke of the Church of England in 1552, as being then in its infancy: but according to my understanding, it was then at least more than 1200 years old, for we have evidence of British bishops having attended some of the earliest councils. Some are supposed to have been present at the Council of Nicea, and it is positively stated that three attended the Council of Arles, which was prior to that of Nicea. The Church of England, therefore, is an ancient and an apostolic Church, deriving its succession from the primitive Church, and one and the same through all ages. The Reformation was no *new formation*, not a creation of a *new* Church, but the correction and restoration of an old one; it professed only to repair and reform, not to found or create—and it assumed to do this, according to the doctrines and usages of the primitive Church. The reformers well knew, that if they did not stand upon that ground, they had no resting place for the soles of their feet; they were fully conscious that if they attempted to alter the Church any otherwise than according to its ancient model, it would crumble to pieces altogether, and probably bury them in its ruins. All they professed, was to strengthen it where it was decayed, and to strip off those additions, which have encrusted or grown upon it in the lapse of time, without the authority of the Scripture, or of primitive tradition; but to this they declared that they adhered; they bound themselves down by this rule, and appealed to antiquity for all they did.” [\[63\]](#)

Then having quoted a passage from Bishop Jewell’s Apology, appealing to antiquity as our Church’s guide, and shewing (to use Mr. Badeley’s words) “that the intention of our reformers in departing from the Church of Rome, was not at all to depart from the doctrine of the Catholic Church,” he goes on to cite confirmatory authority to the same point in even more weighty documents.

“In the preface to the Prayer-book, as well as in the Articles, we have frequent references to the Fathers and the Primitive Church. We have the same in the Homilies; in almost every page they teem with quotations from the Fathers, and support themselves upon the ancient doctrine and the Catholic tradition; and therefore, in inquiring into what was the doctrine of the early Church upon the question now in issue, we are following precisely that course of inquiry, and appealing to that tribunal, which was marked out for us by the reformers themselves. They referred to the primitive doctrine as an indication of their meaning; and of course, if they had departed from that, they would have departed from the Church itself, because the Church, and the faith of the Church, can be but one.”

* * * * *

“I can show, that at the time of the Reformation there certainly was no intention to depart; and was no real departure in any respect from the doctrine of the early Church, on this or any other matter, certainly not on the Sacrament of Baptism, or upon the Sacraments generally; AND WHATEVER WAS NOT ALTERED AT THE PERIOD OF THE REFORMATION, REMAINS, AND CONTINUES TO BE THE DOCTRINE AND LAW OF THE CHURCH TO THIS DAY.” [\[64\]](#)

Again, Mr. Badeley says, “we have authority for looking to antiquity in one or two public documents which are of importance; for in the canons which were made in the year 1571, in that very Convocation which ratified the Thirty-nine Articles, we have this in the directions to preachers:—

“Imprimis vero videbunt, ne quid unquam doceant pro concione quod a populo religiose teneri et credi velint, nisi quod consentaneum sit doctrinæ veteris aut Novi Testamenti, *quodque ex illâ ipsâ doctrinâ, Catholici Patres et veteres episcopi collegerint.*”—Pp. 100, 101.

There can be no doubt that what the Convocation considered to stand *not* with this foundation, they lopped off and pulled down: what, therefore, they left, *of what was in their time so taught*, is to be *so taught still*; and remains as the dogmatic teaching of the Church of England.

“Again, we have,” (continues Mr. Badeley, for I know not how to omit these links in his argument, so much are they to the purpose of my own,) “we have, in the directions given to the bishops by the lords of the council in the year 1582, with a view to their disputations with the Jesuits and seminary priests, a similar rule laid down. ‘If the latter shall show any ground of Scripture’ (says this order in council), ‘and wrest it to their sense, you shall call for the interpretation of the old doctors, such as were before Gregory I., for that in his time began the first claim of the supremacy, &c.’ So that in these we have public directions by authority as to the rule to which parties are to conform,—there is that of Convocation with reference to the clergy in their preaching, and there is this of the council with reference to public controversies and disputations; and therefore there is plenty of authority, as I conceive, for appealing to the early Church, for the Church and State both send us to the same source. No doubt it was the case in all the disputations which were held about the period of the Reformation, to appeal to primitive doctrine and tradition. In one of the statutes of Elizabeth (stat. 1 Eliz. c. 1), there is a direction as to what is to be regarded as heresy, and that is to be judged by the authority of the first four general councils, or any of them, and any other general councils which declare it heresy in the words of Scripture. ^[66a] We come, therefore,” (thus Mr. Badeley concludes this part of his argument) “under such sanction to the ancient Church, and to primitive and Catholic tradition, and I think we shall see beyond question that these prove the doctrine of baptism, &c.” ^[66b]

What Mr. Badeley cites for the special purpose of his particular case, I conceive holds good, and may be asserted precisely in the same way for the whole range of doctrine which our Church maintains; and with this persuasion it is that I have so largely cited passages from his most lucid speech. This part of his argument, though of course limited in its application by him to the special circumstances in which he stood, and the case then before the Privy Council, is evidently not *exclusive*; and I think proves thus much at least satisfactorily; that the Church of England at the reformation never intended for a moment to shut out previous *doctrine*, (though she might not actually mention and repeat it,) any more than she could have intended to shut out previous *history*. Whatever may have been

said *of* her, or *for* her, since, the idea that she was then a new Church; making a beginning for herself, creating herself, as it were, and her doctrine; not being joined to the whole early Church, and not acknowledging her own previous existence, was evidently not only never in her mind, but the exact contradictory was so entirely an essential part of her life and being, that it is everywhere felt and assumed, and the only wonder is, it is as much stated as it is.

I have just said that Mr. Badeley advances these proofs of the character of our Church as to dogmatic teaching for one particular purpose, and in order to support one specific doctrine—baptismal regeneration. To that subject he confines himself in the application of what he had said, and, of course, most properly; because such only was the subject-matter in the appeal on which he was pleading; such the doctrine which, on behalf of his client, the Bishop of Exeter, he was bound to clear. But what I venture to say generally, from all these considerations and proofs as advanced by Mr. Badeley, is this,—that his mode of meeting the attack on the Catholic doctrine of baptism is precisely the just mode, and the right mode for us to meet *any* assault upon the faith of the Church of England; because those considerations of the nature of her rule of faith, and those proofs of her appeal to antiquity, and to the unrepealed dogmas of preceding ages, connecting herself with them, and showing her mind to retain the same teaching, are general, and apply not merely to baptism, or to any one doctrine, but to all our doctrines. And this defence, as it appears to me, is not only legitimate but sufficient: at any rate sufficient until specific exceptions are made and particular defects named, and proofs given, (if they may be,) of a contradictory teaching, by reference to the later authoritative expression of our Church's mind; a position however which, as I shall presently show, you do not yourself assert. One thing further I would here observe before I proceed; that this line of argument and mode of defence of the Catholic doctrine of baptism not having been successful in this particular instance, and with this particular court, (although a reason to stir up all our energies to show the Church *does* not and *never will* acquiesce in the decision of that court,) affords no ground to any man to affirm that it has been authoritatively condemned as an unsound defence, nay, shows not at all that it might not even be admitted, and succeed in another case. The court cannot be said to condemn all the arguments on the

losing side, however it may disregard them. The court is not sitting to try the arguments of counsel, but the general merits of the case; and no one, I suppose, would say that all the arguments of every lawyer who may not gain his cause are judicially pronounced worthless or unsound. What may be justly said of them appears to be no more than that they are not accepted as of weight by that court, or, at the most, that there is an implication of some censure or contempt upon them; but certainly there is nothing to prevent individuals still believing in their soundness; nothing to prevent their being advanced again as occasion may again arise; nothing to prevent them at another time, before even the same, and, much more, before another tribunal, being weighed, being allowed, and being successful. ^[69]

Under such sanction then it is that we claim the Catholic teaching of the universal Church, and the teaching of the Church of England prior to the reformation as *our* dogmatic teaching still, in all points save where it may be shewn (if it may) to be since plainly and expressly contradicted or repealed. And let us observe, more particularly, to what this principle will reach. Mr. Badeley's beautifully connected statement has given as many grounds to think we know the *Church's* mind upon the matter: it has also touched upon the injunction of the *State* looking in the same direction: (to this point, however, I shall have occasion to return). But I say at once, observe to how much doctrine this principle will take us; how much, at the very outset, it will claim and secure for us. Surely, *every matter of faith embraced in the first four general councils is retained*; for no one I presume will dare to say that the Church of England at the Reformation repealed, or intended to repeal, any single article, canon, or doctrine of those four councils. "Yea, even as it were a thing unreasonable," says Hooker, "if in civil affairs the king (albeit the whole universal body did join with him) should do any thing by their absolute supreme power for the ordering of their state at home, in prejudice of any of those ancient laws of nations which are of force throughout the world, because the necessary commerce of kingdoms dependeth on them; so in principal matters belonging to Christian religion, a thing very scandalous and offensive it must needs be thought, if either kings or laws should dispose of the affairs of God, without any respect hath to that which of old time had been reverently thought of throughout the world, and wherein there is no law of God which forceth us to swerve from the way wherein so many and so holy ages have gone.

Wherefore, not without good consideration, the very law itself hath provided,” he continues, quoting the section of the same act of parliament (1 Eliz. c. 1, § 36,) already referred to by Mr. Badeley, ““that judges ecclesiastical appointed under the king’s commission shall not adjudge for heresy any thing but that which heretofore hath been so adjudged by the authority of the canonical Scriptures, or by the first four general councils, or by some other general council wherein the same hath been declared heresy by the express words of the said canonical Scriptures, or as hereafter shall be termed heresy by the high court of parliament of this realm, with the assent of the clergy in the convocation.’ By which words of the law,” Hooker adds as his comment, “who doth not plainly see how that in one branch of proceeding by virtue of the king’s supreme authority, the credit which *these four general councils* have throughout all churches evermore had, was judged by the makers of the foresaid act a just cause wherefore they should be mentioned in that case as a requisite part of the rule wherewith dominion was to be limited.” [\[71\]](#)

The admission, then, of the decrees of these four general councils, which I see not how any man can dispute to be admitted and received by the reformed Church of England, will surely give us a certain large, definite, important body of theology *from* and *by* which to teach our people; not perhaps all that we may want, explicitly set forth, however implicitly contained, because it was of course not until “emergent heresies” pressed upon the Church that she saw, or could see, in what direction her declaratory acts required to be put forth. But certainly in the adoption of these councils and their decrees, the Church of England both indicates her love and reverence for antiquity; and clears herself from all suspicion of attempting to begin “a new thing” at the reformation; as well as establishes a wide and satisfactory basis, on which to rest her further teaching. Can you yourself deny that so far we build upon a good and sure foundation? Or will you say that, after all this is *but* a semblance? that whatever the ecclesiastical appearance or tendency of these matters may have been, the erastian current swept them practically away? Will you say? “Even if I grant you the first four general councils, yet this is *all*; and this is insufficient; at the reformation, whatever her own wish, the Church was so grievously oppressed by the civil power (as she is now) that all the further links connecting her with the doctrine held previously to 1540 were

snapped asunder: the enormous jurisdiction claimed by, and conceded to, and used by, King Henry VIII. swept away that Catholicity which you are bent to shew, and which the Church herself might have been glad to keep.” Will you say? “Whatever may be the vague expressions of some at that time or afterwards appealing to antiquity, yet look at the acts of Parliament of that date, and you will see all this is a delusion, and no real adherence to the prior doctrine is sustainable.” Even this charge I am not afraid to meet. I promised to return in order to consider a little more fully the secular recognition, at the least, non-condemnation of the principle, that whatever previous teaching is “not plainly, openly, and dogmatically contradicted” at the reformation or since, remains to us; and I will endeavour to fulfil my pledge. I think I shall be able to show, that whatever claims of an erastian nature might be made or might be conceded in the sixteenth century (I am not arguing how great they were), yet they did not reach to the point, and were not used to the end, you now suppose, but in God’s good providence over us, left your own principle of 1848 still untouched. By whatever constraint or chance it may seem to man’s eye to have occurred,—with whatever view, or by whatever mind devised, there is something where we should least have expected to find it, in the famous statute called “The Submission of the Clergy,” so much and often lately brought under notice (25 Henry VIII. c. 19), which, if it do not expressly prove the point in hand in favour of the Catholicity of the English Church, yet at any rate, to my mind, much supports it; and, at the very least, shows that the law of that day leaves the matter as it found it; and therefore does not militate against the position of our Church as it stands and is maintained in Mr. Badeley’s statement, nor exclude any of the general arguments from abstract reasoning on the point. “Hast thou appealed unto Cæsar? unto Cæsar shalt thou go.”

I turn to the *Submissio Cleri*—the statute 25 Hen. VIII. c. 19. The first section recites that several canons have been made in time past prejudicial to the king’s prerogative as well as to the laws and statutes of the realm; and thereupon refers to the petition of the clergy that the king’s highness with two-and-thirty commissioners may examine, confirm, or abolish such canons, ordinances, and constitutions. It provides also that henceforth the clergy shall not enact or promulge any constitutions or ordinances without the king’s assent; and that convocations “alway shall be assembled by

authority of the king's writ." The second section empowers the king to name the two-and-thirty commissioners, and makes provision for the supply of the said number in case of the death of any of them. It also further prescribes their duties. Then after sundry enactments in the third, fourth, fifth, and sixth sections as to the courts and modes of appeal, and "the restraint of appeals" to Rome, the seventh section contains a proviso, thus stated, and commented upon by Lord Coke, in his fourth Institute: "But by the said act of 25 Henry VIII. their jurisdiction and power" (i.e. the clergy's in convocation) "is much limited and straitened concerning the making new canons; for they must have both licence to make them, and after they be made, the royal assent to allow them, before they be put in execution. But in the end of that act there is an express proviso that such canons as were made before that act, which be not contrariant nor repugnant to the king's prerogative, the laws statutes or customes of the realm, should be still used and executed as they were before the making of that act." ^[75] This is Lord Coke's comment, and it is much to be noted that he should stop where he does in citing the words of the proviso; because, as thus given, no one would entertain a doubt that all previous canons and ordinances, so far from being abrogated, were by this very act specially confirmed, except just in so far as they might be found contrariant or repugnant to the king's prerogative, or the laws of the realm. It is manifest, too, that this is no oversight (lawyers will smile even at the supposition) on the part of Lord Coke, but that such indeed is his reading of the proviso; for he immediately applies it to a matter which he wishes to show was not binding in law before that time, to bar it, as it were, from *claiming* under the powers of that very act, which evidently it could not do, unless that proviso were understood to confirm precedent canons. "But before that time," he continues, "a disme" (i.e. a tenth) "granted by the clergy at the convocation, did not binde the clergy before the king's royal assent." The argument of Lord Coke in this place appears to determine the point, that he so read the proviso, as to make it absolutely confirmatory, even under the terms of this very act "for the submission of the clergy and restraint of appeals," of all "canons, constitutions, ordinances, and synodals provincial being already made, which be not contrariant or repugnant to the laws, statutes, and customes of this realm, nor to the damage or hurt of the king's prerogative royal," and that these should, as the proviso directs, "now still be used and executed as they were afore the making of this act." I repeat that this view

of the force of the said proviso, and this method of quoting it, is certainly remarkable—remarkable because there are further words in the latter part of the section appearing to qualify the sense, which yet are wholly passed over by Lord Coke, not merely in his quotation, but actually in his argument. I mean that his argument touching the previous power of the clergy to grant a disme, implies his belief that the *general* previous powers of the canon law still prevailed and this, (whether he considered the said disme to infringe the king's prerogative or not) shews that the remaining apparently qualifying words of the proviso are by him advisedly set aside.

Nevertheless, I will here add them, lest, in spite of such authority for the omission, I should be, or seem to be, acting unfairly, and not making the most of the adverse argument. The words I allude to are these: “The previous canons, constitutions, &c. shall now still be used and executed as they were afore the making of this act, *till such time as they be viewed, searched or otherwise ordered and determined by the said two-and-thirty persons, or the more part of them*, according to the tenor, form, and effect of this present act.” ^[76] It would no doubt appear from these words, as well as from Section 2 of the act, that there was an intention at that period of reviewing the whole body of the canon law, with a view to the obliteration of everything in the previous enactments which might appear to those commissioners unsound or inconvenient. This design, however, was never carried into effect. I know not how to regard it as other than a special mark of God's great mercy and gracious goodness to this branch of his Church that it was frustrated. Perhaps it is not quite clear that the powers of these commissioners were intended directly to touch doctrine, or to reach beyond the abolition of canons and constitutions appearing to be contrariant to the king's prerogative, or repugnant to the laws and customs of the realm, though I think the terms employed embrace a wider field, and at any rate in the temper of that day, might very probably have been understood and used to a wider purpose. “Great and manifold” indeed would have been the perils attendant on so sweeping a reformation of all the previous doctrine and discipline received by the English Church; and not without a trembling thankfulness as well as, to my mind, a heart-felt acknowledgment of the divine mercy, are we to think of our escape from so great a danger. To have had only so much of the laws and usages, doctrine and discipline of the primitive Church, or of the distinctive teaching of our own Church previous to the passing of this act, as such a board of commissioners might have

thought good to leave us, would indeed have been to be put to the utmost hazard as to the measure of dogmatic teaching left us at all, and to the greatest risk of our being cut off from Catholic antiquity altogether. Of course even then, the mere act of parliament, and its authority to the commission could not have effected this. The Church might, theoretically at any rate, have broken from the bondage, and severing her connexion with the State at whatever cost, have preserved her purity and freedom. ^[78a] But, considering how little likely any such resistance appears to have been, if that commission's work had been carried out, we may well thank "the Lord our defence," that in another mode we were delivered from the danger; and that although in the reign of King Edward VI. the two and thirty persons (at any rate one and thirty of them) were appointed, yet they never accomplished the review in question. "It is not necessary," says Mr. Gladstone, "to discuss the wisdom or propriety of this petition of the clergy," (i.e. to have such a commission appointed) "since the enactments passed in consequence of it never took final effect; and however material they may be as illustrating the spirit and tendencies of the day, they have not in any direct manner entered into the constitution of the English Church." ^[78b] "The review of the laws ecclesiastical, indeed," he says again in a further passage, "has no longer any effect for us, as the scheme ultimately failed of effect, and has now no legal or practical being." ^[78c] It is not, indeed, that the whole act is repealed. As we well know this is not the case. It was repealed by the 1 & 2 Philip and Mary, but revived by the 1 Eliz. c. 1, so that, if it bind some things upon us now which the Church might wish otherwise, we yet have the advantage of that proviso in its last section, establishing previous canons and constitutions of the Church of England, (with the exception of such as may be contrariant to the king's prerogative, or repugnant to the laws,) *until* a contingency should arise, which has never been fulfilled. That it never was fulfilled, may perhaps explain Lord Coke's comment upon the proviso in question as an absolute assertion of the previous canon law, and his having apparently passed over as entire surplusage the, at first sight, qualifying words with which it concludes. And thus we may see there is an actual statute of the realm declaring, however unintentionally, yet really and practically, the authority, so far as statutes can declare it, of that very rule of the Church's teaching previous to 1540, which you yourself so happily, as it seems to me, explained and enforced in 1848. Thus the very act of parliament, and the

very proviso in it which threatened to be the destruction of the Catholic character of our Church, (i.e. if those commissioners had done the work contemplated,) become not only a witness in its favour, but actually declaratory by law of its connection with the Church previously existing. Henry VIII., and his act “for the submission of the clergy,” become the one,—really “Defender of the Faith,” and the other,—so far as the temporality can effect it, absolutely a charter, securing the Church’s dogmatic teaching by legally binding upon us the general body of the canons and constitutions, ordinances and synodals provincial of the previous ages. Surely we should be slow to say it is a straining of the eye of faith if herein it seems to see an accomplishment of the prophet’s word, “No weapon that is formed against Thee shall prosper, and every tongue that shall rise against Thee in judgment, Thou shalt condemn: This is the heritage of the servants of the Lord.”

I have spoken of the proviso in this act of parliament (25 Hen. VIII. c. 19) as confirming generally the canons precedent to its enactment. Of course I have not forgotten that the statute itself makes two exceptions, or rather, excepts two classes of canons and constitutions from that confirmation. 1. Such as may be “contrariant or repugnant to the laws and customes of the realm.” 2. Such as may be “to the damage or hurt of the king’s prerogative royal.” It may be well to pause a few moments, just to point out, though it is so plain it will require only to be mentioned to be allowed, that these limitations in no wise affect the argument as to the dogmatic teaching of the Church on doctrine. They point evidently to the claims of the papacy, and the powers of the supremacy. Indirectly, no doubt, the question of the supremacy may come to *affect* doctrine, as we plainly see at this time, but I mean that, as to previous canons upon doctrine, properly so called, these limitations of the act do not touch our assertion, that they remain as they were, except they may be shown to be plainly and openly repealed. Thus the two exceptions made have no bearing upon those great doctrinal points, whereon you and I alike desiderate dogmatic teaching; for no man will contend that the doctrine of the Church Catholic on baptism, on justification, on confirmation, on the holy eucharist, or on absolution, though carried ever so far, will in any wise clash with the king’s prerogative, (“that only prerogative which we see to have been given always to all godly princes in Holy Scriptures by God himself:”) nor are we

asking that any doctrine shall be received which may be, *if it be*, repugnant to the laws and customs of the realm. All that we assert is, that where previous canons be not so, (and we fully believe those for which we contend do not come into collision with either law or prerogative at all,) and where the Church has not herself directly annulled them, there these same doctrines remain, as they have ever been received by the Church Catholic, and by the Church of England as a branch thereof;—as indeed she has, and had received them from primitive times and sources;—as she had accepted, guarded, and enforced them prior to the year 1540.

Of course in matters of law and legal construction I desire to speak with all deference and submission. Here, less than any where, should I wish to argue with over-confidence. I trust I shall not be doing so, if I sum up this part of my argument by saying, that it appears to me we are entitled to believe that the proviso in the 25 Henry VIII. c. 19 (the condition stated in the “until,” &c. never having been fulfilled), either actually asserts the force of the general body of previous canons and constitutions of the Church of England; or, at any rate, and at the very least, that it offers no bar, even secularly, to the general reasons as stated before, from common sense and the nature of things, as well as from the Church’s own appeals to previous teaching that those canons must remain in force, and that, to use again Mr. Badeley’s words: “*Whatever was not altered at the period of the Reformation, remains and continues to be the doctrine and law of the Church to this day.*” [\[82\]](#)

IV. I have said that there appears to be another confirmation of this view, from the consideration of what the Church of England would deprive herself of, if the contrary principle were to be carried out, and her existence dated only from the sixteenth century, and if it were ruled that nothing could belong to her faith and doctrine, but what was then determined and in words set down. It will not be necessary to enlarge upon this topic, but a few instances it may be well to give.

What then could we say is the teaching of our Church upon the inspiration of Scripture, if we had no appeal to ancient law, usage, or belief? The whole, which it was thought necessary to declare upon this matter at the reformation, is contained in the sixth Article, and that deals not with the inspiration of Scripture at all, a point not in dispute, but with its sufficiency,

as containing all things necessary to salvation, as opposed to a particular view of tradition. That article also enumerates the canonical books, and speaks of their “*authority*,” (the Church also, we may remember, is said to have “*authority*,” in another article, but many who assent to that would scruple perhaps to say they believe in her inspiration); and I do not think any man can say that there is in the article in question any declaration either that those books which are canonical are inspired, or those which are uncanonical are uninspired; not of course, in the least, that it was intended to throw a doubt upon the inspiration of the Scriptures, but that the articles, and even the formularies of the Church of England were not drawn up to declare all points of belief, because the Church unhesitatingly threw herself upon all previous doctrine, except where in any particular case she saw cause to alter, correct, or repeal. Just in the same way consider many other points. What strict belief should we have, upon the other hypothesis, as to the existence and power of evil spirits; or the eternity of punishment; or what rule for the observance of the Lord’s Day (save just as any other holy-day); or what mode of ascertaining the Church’s mind upon very many other subjects which have arisen or may arise, especially with regard to the pantheistic tendencies and theories of modern times, not treated of because utterly unknown and un contemplated in the sixteenth century, if we were tied down to the mere wording of the reformation documents, but which are all of them capable of refutation in the broad expanse of doctrine preserved from the beginning! It will, I think, be plain to any one who will pursue this subject into its details, that the connexion of our Church with the Church previous to the reformation, is a fact necessarily to be assumed by us all, unless we would bring the whole question of her doctrine into a manifestly false position. To suppose this connexion to be wholly dissolved, is in truth such an evident *reductio ad absurdum*, as amounts to a full proof that no party of men, I do not say of great ability, but of an ordinary reason, could have intended to adopt that theory. Therefore it is impossible to believe that our reformers, in drawing up articles of religion, “to avoid diversities of opinions, and for the establishing of consent touching true religion,” and which treated of course of the diversities which then prevailed; and in putting forth practical offices of devotion, could, I say, have designed to ignore all that previous body of doctrine, which happened not to come into direct mention in those documents. If they had not purposed to retain the provincial ordinances of their own country, they

might be expected plainly to have said so; but even if they had done this, they *must* have cast themselves upon the general teaching of the Church Universal, in a manner from which after all we should have nothing to fear, or, they would have left the Church they were reforming in such a bareness and nakedness of doctrine altogether, as no opponent of the Catholic character of our Church has ever pretended to imagine or assert. On this ground therefore, once more, I cannot but believe that the conclusion which you held and so lucidly expressed in 1848 is tenable and sound; and therefore that what we are still bound to teach, is the exclusive doctrine of the Church Catholic, unless the further explications on any matter at the reformation render it not merely ambiguous, as far as the documents of the reformation are themselves concerned, (this is insufficient to harm us, and nothing to the purpose,) but positively heretical, and absolutely contrariant to “the faith once delivered to the saints.”

You will see what I mean by saying that mere ambiguity in our reformation documents will not harm us, is this, that we have a prior and superior rule to appeal to, (if the preceding argument be sound,) by which such ambiguity will be corrected. No one pretends there can be any hurtful ambiguity or insufficiency in the connected teaching of the Church Catholic; and therefore wheresoever we may take refuge in that to cover any omissions or defects, if such there be, on essential doctrine in our later rule, we shall take no damage. The only thing which would really harm us, would be absolute contradiction of the truth, or positive assertion that such or such essential points were intended to be left vague and ambiguous. But this would be harmful, because in fact such declarations would not be merely declarations of vagueness or ambiguity, but would be heresy; would not be to assert, of two conflicting doctrines, that the Church teaches *both*, but, in fact, to rule that she teaches *neither*. No one however will, I think, pretend to say that the Church of England has said any where, in so many words, that she means to leave open such or such a doctrine, which the Church Catholic has closed. Perhaps you will say, “Not in so many words:—but by inference she does it; by her undecided manner where she has dealt with the topic, by the laxity which her words too evidently permit, by the known bias and opinions of many of those who framed them.” This, however, is just what I have been saying amounts to nothing against the previous unrepealed doctrine to which she is to be referred, and the consent of Catholic

antiquity, by which she is really bound. I do assert *such* a repeal, if it be no more, is no repeal at all. No statute law can be so set aside, and assuredly not this, the law of Christ and his Church. If, indeed, we *had only* what the Reformation left us; if we were constrained to think all needful doctrine was there treated, and fully treated of; if any document of authority of that period had declared that no previous doctrine was admissible, unless then repeated and specially recognized; that nothing was important as a matter of faith beyond what the writings of that time included in their summaries, or embraced in their definitions; if the reformation had thus pronounced itself *αὐτάρχης*, and thus separated its Church and doctrine from primitive antiquity and the faith of Christendom, then indeed should we see that we were “in evil case,” to be required “to make bricks,” and yet to have “no straw given us.” But, since there is no such document, and no plausible evidence of even any such design, we trust we may put aside all fear that we are in this dilemma, and still build up our doctrine upon the sure foundation of “that which hath been from the beginning.”

Will you say? “I allow you have the old teaching upon points not mentioned at the reformation, but on no others: where any thing is treated of at all, it is definitely settled by whatever is set down; and thereupon no regard must be paid to any complement of doctrine derived from earlier teaching.” I answer, on what authority are we to receive this arbitrary distinction? Surely not upon the shewing of any direct evidence: if so, produce it. Not on the implied injunction or animus of the Church at the reformation, for she is full of appeals to precedent teaching on all points. Not on that of the state, for, as I have been shewing, at the very least, and if it do not enjoin the direct contrary, it enforces no such prohibition. And if the reformers of the ecclesiastical polity of that day intended any such restriction in their appeals to earlier times, (which I do not think they did) yet in that case, as it appears to me, God has overruled their intention, and brought to nought their counsel, by their having left no record to bind any man’s conscience in the Church of England to such a denial of Catholic theology. And *who* shall say, if they “*intended to include*” but “*did not include*”, the latitudinarian rule; ^[87] if these things be so indeed, it was not for this very purpose they have fallen out after such a fashion; that even after so many practical abuses as we know have crept in among us, after so many years when the ancient landmarks have been well nigh removed from sight, after so much deadness

of heart among mere formal religionists, and so much running after novelties among the more earnest, enthusiastic, or self-willed, after all these things, and after so long a period of darkness on the land, yet now when there has been again a brightening, an awakening, “a zeal” more “according to knowledge,” a regard to antiquity, and a longing for the religion of apostles and apostolic men of old time, that now we might indeed *have that* to fall back upon which should prove our safety: might find the landmarks were only buried, not removed: might experience indeed and in truth that “heaviness may endure for a night, but joy cometh in the morning,” and might in that morning’s light be able to clear the path again which leadeth “into all truth,” and so walk onward into the “bright shining of the perfect day.”

Here too you will perceive why I said in the early part of this letter that it was important to state plainly *what* it was to which I had committed myself with respect to the animus of the reformers, and that this matter of intention being clearly understood, would be found to have a necessary bearing upon our present subject as we proceeded. If I had asserted the authority of the animus of the reformers to explain the meaning of the documents they put forth, interminable questions might be raised as to the subjects on which there could or could not be considered enough of ambiguity to allow the appeal to the previous Church. But, as I have before explained, not any where intending to assert that the sense of those documents was to be determined by the intentions or opinions of their framers, I trust I am in no dilemma here when I cannot admit the animus of the reformers, even if it were proved to have been to exclude such appeals, to be a reason for their exclusion. Even if the animus of ever so large a body of them could be absolutely shewn to have been to conciliate all parties by leaving open questions on essential doctrines in the formularies they put forth; if even they believed of themselves they had attained this end, yet as they forgot (if we may use the term) to break asunder the bond which connected the Church of England at that date with herself in the preceding ages, and with the Church Catholic, they left us all we want, to maintain the one faith once delivered, the faith of Christ our Lord, and of his Church from the beginning. If this result came by inadvertence, (as perhaps *they* might say) but of God’s great mercy, and the stretching forth of his arm over us, (as I should affirm) i.e. not by the oversight of man, but by the overseeing of

God, still, any way, the rule of a Catholic theology has been retained, and their counsel has been brought to nought, so as merely to give us, as perhaps I may allow, from one point of view the *semblance*, but in no wise the *reality* of a lax rule of faith.

There is one argument indeed which, if it could be supported, might prove the rule to be really lax. I mean if it might be maintained with truth, that there are declarations in our articles, or doctrines in our formularies not merely ambiguous, or less clearly defined on the Catholic side than we might wish, but actually repugnant to the faith and contradictory to it. Of course this would be a fatal objection to the whole line of argument I have been using; for it would show, so far at any rate, a repeal of the previous doctrine, and preclude our gaining that reference to it on which I have been insisting. But I shall need take no great time or toil to show that this is not the case. You grant me the point yourself, not merely in your treatise on absolution, in 1848, but in the very letter to which I am now replying. Thus you concede it in the passage already quoted, and even in the very charge you make—"I am compelled to own that the utmost we are justified in declaring seems to be—not that the Church of England now 'holds and teaches, &c.;' but—that the Church of England now *suffers and permits* to be held and taught; and again, as to the right interpretation of the Prayer Book, not '*must* be understood,' but '*may* be understood,' to mean all that was meant before the year 1540." ^[89] Your charge against the present state of the Church, you will observe is *no more* than that questions are left open; it is not that heresy is exclusively maintained or enforced. Again, to the same purport are the following passages: "Remember, I am in no degree withdrawing from the full extent of the assertion, repeated more than once, that the Church of England leaves 'open' so many deep and important questions." ^[90a] So, in another passage, where you speak of the Eucharistic sacrifice—"Again I remind you that I am very far from saying now that the Catholic doctrine is denied and repudiated . . . for I have for many years taught (and as you know, have lately published in a sermon) that in the blessed Eucharist the body and the blood of our Lord are truly offered as a propitiatory sacrifice for the living and the dead." ^[90b] It is plain you do not think this denied by the English Church; but your complaint is, that the articles and liturgy do not peremptorily enforce it.

Again, in commenting upon the “real presence,” and the words of the Catechism, that the body and blood are verily and indeed taken and received by the faithful, you say, “At the risk of weary repetition, let me once more say, that of course this place of the Catechism does not assert that the body and blood of Christ are not verily and indeed taken by all; and if there were in other places of our formularies anything even approaching to a statement of the reality of the presence of our blessed Lord in the consecrated bread and wine, independently of any qualifications or dispositions in the soul of the receiver, we might be able to show at once and distinctly that these passages in the liturgy and catechism cannot justly mean what they are generally brought forward to prove.” ^[91] I need not multiply quotations on this head, though I believe I have not nearly exhausted the passages I might cite. In short, your whole letter merely charges the heresy of “open questions” upon our Church, not the heresy of our being forbidden on any point to teach the catholic truth. And I say again, if this be all, we fall back at once upon your own former principle, though now by you abandoned and forsaken. We say, that we are not left to these the documents of the reformation alone, and therefore, if there are in them deficiencies merely negative, which is all your charge, we can supply the necessary teaching from those deeper wells of truth from which, whether intentionally or otherwise, the promoters and managers of the reformation have not debarred us. Neither the Church nor State enactments hinder, as I contend, this appeal; and observe, *if we MAY make it, we MUST*. We are not at liberty to use it if we please, and discard it if we please, for it is “THE VOICE OF THE CHURCH OF ENGLAND,”—a voice, as I firmly believe, which, if duly listened for, and scrupulously obeyed, will clear up every open question which the Church Catholic demands should be cleared up, and will answer every charge which a shallow observation of only the later documents, of the reformation, might bring against us. So fair and strong from these considerations do the grounds of hope and confidence appear, that I am tempted to paraphrase, though in a contradictory sense, one of the most despairing pages of your letter. You argue, “It is not necessary to pretend to know the dealings of Almighty God with men and nations so accurately, as to attempt to lay one’s finger upon the one, two, or three special acts which may avail to cut off any portion of the one holy Catholic Church;” ^[92a] and then you further bid us think whether with us the actual cutting off may not have been at the reformation, although a certain life

may have been found for a time even in the severed limb. I am not concerned indeed to deny that there may have been much in the reformation to wound the branch; but I also maintain that its connection with the parent stem never having been severed, the life remains, and the wound may be wholly healed. ^[92b] ‘As regards the Church of England in particular, it may be that the so-called reformation contained—perhaps unknown to the original promoters of it’—precious ‘seeds’ of good ‘to bring in a certain though slow’ revival of all vital powers weakened by so great a shock; ‘and that then either’ old principles were secretly preserved, which in their after development would most surely avail to the restoration of all essential truths, or new principles were, unintentionally perhaps, so guarded and circumscribed that ‘the gradual course of time,’ as they came to be applied, would show them to be harmless. ‘Or, once more, it may be with portions of the Church Catholic as with the vine her mysterious type. “I am the vine, ye are the branches,” were the words of our blessed Lord, speaking of his body the Church, of which he is himself the Head. And we may well conceive how a branch,’ partially injured by some disease or canker, may suffer from the pruning-knife which endeavours to eradicate it; and yet in a period,—longer or shorter, as the case may be,—never having been severed from the stem, but deriving from IT the fulness of its life and sap, may wholly recover from the wound which the knife has made, and after a time flourish again in its pristine vigour, even as in its days of early youth, before any corruption had laid hold upon it, and bring forth fruit again an hundredfold for its master’s use; though requiring time to heal its wound, yet certain to be restored, if no fresh accident befall it, because of its union with the parent tree.’

I know well, analogies and similitudes may be made on all sides, and in support of almost anything. I know also, however useful as illustrations to clear our meaning, and to answer objections taken in limine, yet how little they can be relied upon as proofs: but I venture upon this antagonistic paraphrase of your illustration, that I may ask the question, whether perchance the view sustained by mine may not as probably be the truth as that sustained by your’s; and that I may express my trust we shall none of us be led astray from doing all that duty bids us do, in the tendance of our branch of the vine, by any such similitudes as those you have advanced, if the principle of your letter may be supposed to have found an answer; if,

upon the grounds I have endeavoured to draw out, we may claim our union with the parent tree; in short, if the fact of the severance of the reformed Church of England from the Church Catholic be not made out beyond question or dispute. Until it be so proved, *I* at any rate feel it to be my duty stedfastly to cleave to her; not being blind to practical shortcomings, not refusing to acknowledge the dangers which beset her, even to the extent that she *may* so bend to the spirit of the world, and recognize the erastian liberalism of this day and age, that she may, instead of rising up again, be wofully and entirely cast down, but certainly not seeing that God hath so cast her down as yet. I do not, and I cannot take this as proved, or as done already, and therefore cannot accept the statements of your letter, nor the conclusions to which they lead. For you ought to have proved in detail, not that our Church's articles or formularies since the middle of the sixteenth century, taken by themselves, or interpreted by cotemporary opinions, admit a double meaning, but that they actually *exclude* the sense and meaning of the Church previous to 1540; because if they do less than this, the admission in themselves of open questions (if it be so) is qualified and overruled by the earlier unexcluded dogmatic teaching; and I say it boldly, in spite of the scorn and contumely with which the liberalism of the day will greet such a sentiment, the present Church of England must thereby be understood to *require* all those ancient dogmas to be enforced, as the ONE ONLY TRUE SENSE of documents, themselves perhaps, *by themselves*, capable of a doubtful interpretation. Nothing less than the having "plainly, openly, and dogmatically asserted the contrary" will annul this obligation, and herein, as I believe, and as I have endeavoured now to show, will be found, in God's providence, the safeguard and shield which He has thrown over this branch of his Church,—a safeguard and a shield, under the which we may rest a little while, "until this tyranny be overpast," until she shall be able not merely to *claim*, but again to *use*, "the whole armour of God," and convince the world practically of her *teaching* as well as *holding* "the Catholic faith whole and undefiled." I do not, I dare not, shrink from the thought that further proof, shall I say trial, on this point awaits us. In God's time and in God's way I expect it. Humbly and reverently I trust I may add, "Let it come." Perhaps it may be nearer than we think; for it is evident those who agree with me at all in the defence I have here set up against the charge of want of dogmatic teaching, must, in these days, as the assault upon catholic truth grows fiercer, be even more and more distinct, earnest,

and plain-spoken in its assertion. As we claim, so will we, if it please God, more and more use the ancient faith, whether men “will hear, or whether they will forbear.” Not indeed as a process of tentation upon the Church, but as a simple matter of duty, and as a safeguard to our people, lest unawares, and step by step, they “forfeit all their creed.” But this, one way or another, is likely to bring us to a trial, and to a very practical solution of the questions raised, perhaps I may say somewhat speculatively, in your letter. If the Church of England then “will not endure sound doctrine,” let her say so. It may be we shall have immediately to distinguish between the voice of the Church and the voice of the establishment; but at any rate, let the Church speak out. Our perils are too great and too pressing on the side of acquiescence in heresy, to give us any option now as to speaking or keeping silence. Will you tell me that the bishops of our Church neither hold nor will tolerate these ancient doctrines; that they will soon settle this matter, “make a short work,” speak out, and show us the true Anglican faith; and drive from the Church of England those whose walk and whose heart are with a faith older than three hundred years? God forbid that I should sin against them by believing you. God forbid that I should believe any such thing, unless I live to see it. But if it *should* be so indeed; if the erastianism and latitudinarianism of the day *should* so have eaten, or *should ever* so eat their way into the heart of our episcopate, that such assertion of our Church’s catholicity, such clinging to ancient doctrine, such walking with the Church of the Apostles, and the religion derived in uninterrupted succession from them, shall be no longer endured among us, then let them know assuredly that they who bring this to pass,—they who drive the matter to such a point,—they who take the aggressive against sound doctrine, and ancient faith, will be responsible for that which shall follow, and will excite and evoke a spirit, with the which they and all their’s will in vain contend. They will do that which will provoke, not dribbling secessions, here a few and there a few, but that which, setting up the mark of Jeroboam in the land, as the symbol and banner of the establishment, will drive from *it* and *them* all the true priesthood and really Church feeling of the country. Then will there be, either a return to the Roman communion such as “neither their fathers nor they” have ever dreamed of, or a free Episcopacy, which shall cast aside the establishment as an “accursed thing,” throw itself upon Christendom for communion, and appeal to a general council of Christendom for approval, and, shaking to the very centre the whole

religion of this country, shall gather into its own bosom, I will not say all that is good and holy, but all that is good and holy, and has with this goodness and this holiness any distinctive Church knowledge or Church feeling. Men who calculate consequences, if there be such, may well ponder these things, before they tremble “at the fear of man,” or think any way safer than the old paths, and the ancient faith. Let no man say I threaten wrongly, or threaten vainly. I desire not to threaten at all; but I know what I write; and truly, “is there not a cause?” Let all, friends and foes alike, know and well weigh on what a sea they are now embarked. Let them be prepared for what must come, if there be anything like faint-heartedness or cowardice among us, anything like treason to the Catholic faith in those in high place. Let it be known well that we, who are firmest and plainest in declaring the duty of cleaving to the Church of England now, and so are fighting her battle against you, and those like you, who take the easier perhaps, at any rate the shorter, road to escape from her embarrassments, that we do not pretend *if* the difficulty should arise that we cannot remain members of the English Church, and members of the Church catholic at the same time, we can hesitate as to our duty. Neither can we unlearn all that we have learned from the ancient fountain-heads of doctrine, and believe the catholic faith to be a thing of yesterday, or square it by the liberal theories of modern schools. We have drunk too deeply from the well-heads of antiquity for this to be possible. We can no more go back and believe the catholic truths we have imbibed to be no more than superstitious inventions and human figments, than we could return to the system of Ptolemy, and believe this earth to be the centre round which the sun and the stars revolve. These things we cannot do; but certainly we can, in mind and theory, and we do in fact, separate the ideas of the *Church* and the *establishment*, and can contemplate the possible arrival of a time and circumstance when the one must be kept to at the expense of the total abnegation of the other. And here foreseeing, we also count the cost. We compute whether we be able, “with ten thousand, to meet him that cometh against us with twenty thousand,” and in His name, and with His presence, who has promised to be “with His Church always,” we are not fearful, and shall not be careful if we must let the establishment go. We sit down to “build our tower,” not without considering whether we have “sufficient to finish;” and again, in the riches of His grace, we deem we have. We would make it “after the pattern which has been showed us,” and know then full

well it will be a building which shall be able to shelter, and an ark which shall be able to save, all that are committed to us, all who will take refuge in it. To attain this, we are ready to sacrifice all but truth, to fight against all but GOD!

But I say once more, our perils are too great at the present time to allow of silence in the Church, to admit of any compromise or uncertainty, when inquisition is made as to what we hold, or teach our people. Let the Church of England speak, and speak unequivocally, and we shall know what to think. Let her courts, duly constituted, and especially her synods if they may meet, pronounce what she will bear, and what she will not bear; what she will recognize as her own with a mother's love; what she will repudiate and put from her with a step-mother's aversion. Then shall we know our duties, and see our way. Then perchance will it be found the State has reckoned unwarily, and counted upon too much. Then, if it try to bind *her* with the chains of the spirit of the day, may it be seen of all men that they are but as "green withs," or "as threads of tow touched by the fire," to bind the mighty. Even should the State prevail in mere numbers, who shall say but there shall be found some high in authority, and endowed with the powers of the Apostolate, who will stand "valiantly for the truth," and "be of good courage, and behave themselves valiantly for their people, and for the cities of their God," and use their powers, and the authority received from Christ, to shake, as I have said, the establishment to its fall, if there be any effort, by means of it, to take from us "one jot or tittle" of the faith? If *they* do this, even but six, or three, or two, or one among them, with the Creeds and Christendom to back them, surely we shall know what to do also. If they do not, we shall again know both what to think and what to do! Surely then God will "make a way under us for to go," and at his word alone, we shall go forth; not certainly, as *I* should go forth now, were I to follow your steps, and remove from the place where He has cast my lot, with no light upon my path, no assurance, no conviction, no belief that I was proceeding under his guidance, or doing that which is according to his will. Rather, I cannot but adopt, and with it I will conclude this part of my present subject, the noble profession of thankful confidence made by yourself at the close of your treatise on absolution, where, acknowledging the singular preservation to us of a very minute particular, (involving, as

you considered, important doctrine,) even a single letter in one of our rubrics, you thus expressed yourself:—

“The more I consider this circumstance, with the more heartfelt thankfulness and confidence do I look upon it as a token among many hardly to be unseen of the care and guiding with which the Almighty Head of the Universal Church ceaselessly has guarded, to his own wise ends and purposes, this our Church of England. These considerations, and such as these, bring their especial comfort. Some men, perhaps, may be indifferent about them. For myself, at one time in one thing, and at another in another, light and trivial as alone or singly they may or might have been together in their accumulation they supply—not arguments merely, for that in comparison would be a poor result, but—patience, in days of dispute and difficulty, in days of trial and obloquy and reproach; motives, again, to exertion and untiring labour in our Church’s cause; constant confirmation of the sacred truths which I believe she holds; and above all, with God’s most gracious help, an undoubting determination to endeavour by all means, and in every possible way, under her own holy shadow and protection, still and for ever to defend her against avowed enemies from without, and against mistaken friends within.” [\[101\]](#)

Although these remarks have extended far beyond the length which I contemplated when I began them, I am unwilling to bring my letter to a close without adverting to one or two points further, connected with the whole subject of which I have been treating, and the prospects which are before us. I have said, “I think we have the *time*, and I trust we have the *means*, effectually, though it may be gradually, to vindicate our Church.” [\[102\]](#) You may ask, perhaps, “What are these means?” You may say, “Deeply as many may feel the present crisis; earnest as they are to disclaim the decision of the Judicial Committee, that Mr. Gorham is fit to hold a benefice with cure of souls in the Church of England; determined as they may be to leave nothing undone which may be done to shake off the grasp of state interference with her spiritual rights and jurisdiction; yet what *can* they do more than uselessly agitate, or hopelessly complain? I know well,” you may say, “you are looking to the revival of the Church’s synodical functions; to the restoration of her convocation, to set all these matters

right; to clear her doctrine, and consolidate her freedom. But these things are too uncertain and too distant to be accounted of. If you have nothing nearer and more direct than these, or such hopes as these for remedies, I can but reckon them ‘as sounding brass or a tinkling cymbal.’ You will sooner be committed to the denial of the whole faith, than regain from the ingrained superstitious erastianism of this day and this people, the slightest approach to ‘the churchmen’ being permitted in their convocation to ‘do the work which is proper unto them.’” Now, I do not think this, yet I will not argue it:—but will rather come to something nearer and more direct as, at any rate, the beginning of a remedy. This, then I say, is nearer:—direct to clear ourselves individually from blame, and, it may be, competent in time to work for us an efficient cure either with or without the consent of the State, as God in his providence shall order. This I say:—to break communion with the Archbishop, and with those who uphold him in upholding the judgment of the Privy Council. This is a course open to us all; and is a direct course towards one part, at any rate, of our objects—the freeing ourselves from blame. Perilous, however, as our position is, I do not say the time has come for this to be done as yet; much less that *I* am competent to decide when such time shall have arrived. But I mention the thought, that you may perceive men’s minds are not without the suggestion of something immediate, practical, and real. However fearful the thought of such a course; however loth we may be to contemplate it; however startling it may sound in many ears to hear a priest in the Church of England speak such words, as of cutting himself off from communion with the primate of his Church; yet it is so far more fearful to think of that Church coming to deny an article of the creed, falling into such a condition that no Christian Church in ancient times would have communicated with her; (and this, I will plainly say, is what I think we are in danger of coming to, and shall come to if we acquiesce in the present state of things; and) this is so much more fearful than the alternative I have suggested, that I feel it is only right to call attention to that alternative, as a means by which we may escape being “partaker of other men’s sins.” *Your* difficulty is, whether a man may lawfully remain a member of the Church of England and trust his soul to her keeping. *Mine* would be to justify myself in leaving her whilst such a remedy remained in my hand unused. Surely if we are able to separate ourselves from all responsibility in the latitudinarian guilt, it will be sufficient for us, for the time at any rate, and may besides result in

further good. If our archbishops or archbishop should bring things to that pass that no early Church would have communicated with them, then, no doubt, if we cannot escape from implication with what they have done, we shall be ourselves involved in the desert of excommunication; but if we can do what those very Churches would have done, we may hope this will avail to show we should not have been cast out of the communion of Christendom. If we can so separate ourselves from their deed, and the erastian influences which admit heresy, that we should have been received by all early Churches as “the orthodox,” or “the Catholics” of the English Church—then I do not think we shall have any excuse for deserting our spiritual mother for the blandishments of another communion, for anything that has been done as yet. Thoughts of this method of proceeding, and musings whether the time has not come openly to disclaim communion with all those who support the Judgment of the Privy Council in the recent case, have been now for many months in the minds of some. Thus I may cite the very passage quoted by yourself, at the close of your first letter, from Mr. Keble’s first number of “Church matters in 1850.” “If the decision be adverse, it needs to be distinctly proved that a bishop or archbishop acting on that decision would not involve in heresy both himself and all in communion with him.” p. 26. Again, the same author has said: “In old time, such a step” viz. as the archbishops have taken, “would have been met by the Christian people withdrawing from their communion for a time.” [\[105a\]](#) It is true the writer did not appear then to contemplate such a measure as possible for us; and added some explanations at a later date on this point, showing what were our peculiar difficulties in reference to it: yet he added, at the same time, “I do not say that such interruption of communion may not even now be an orthodox bishop’s duty; although, as yet, by God’s good providence, the contingency which we have been told would make it so has not occurred.” (I presume this means the Archbishop’s institution of Mr. Gorham.) “I do not say that it may not ere long be a priest’s, or even a layman’s, duty; I only say that it is not *the* step for priests or laymen to take just now.” [\[105b\]](#) Again, let it be remembered, that as might be expected, he who has borne the brunt of this battle, who has waged the Church’s war after the pattern of a soldier and bishop of ancient time, was among the very first to suggest this remedy; nay, more, to encourage and cheer us by openly saying he should in a certain contingency, himself adopt it. Even so far

back as last March, immediately upon the delivery of the judgment, the bishop of Exeter thus sounded the note of warning:—

“I have to protest,” he said at the close of his letter to the Primate, “against your Grace’s doing what you will speedily be called upon to do, either in person, or by some other exercising your authority. I have to protest, and I do hereby solemnly protest before the Church of England, before the holy Catholic Church, before Him who is its Divine Head, against your giving mission to exercise cure of souls within my diocese to a clergyman who proclaims himself to hold the heresies which Mr. Gorham holds. I protest that any one who gives mission to him (Mr. Gorham) till he retract, is a favourer and supporter of those heresies. I protest, in conclusion, that I cannot, without sin, and by God’s grace I will not, hold communion with him, be he who he may, who shall so abuse the high commission which he bears.” [\[106\]](#)

What, then, do such weighty passages press home upon us, but that the time for such action may come? Perchance even now it is drawing very near. One almost trembles to write it; so fearful and awful a thing it is to contemplate openly breaking the unity of the Church of England, and interrupting communion with its primate, if he proceed to consummate, or permit to be consummated by his authority, (nay, without his most deep and solemn protest on behalf of God’s truth, the Catholic faith, and his own high office,) the institution of Mr. Gorham. If he make no disclaimer, and throw no impediment in the way, the Rubicon indeed is passed, and there must come the counter-action of all earnest-minded Catholics in this “city of our God.” I, at least, am desirous to say that I stand prepared (not indeed to act alone and upon my own mere judgment, but if those who may best advise us sanction the proceeding, as I verily believe in no long time they will,) to withdraw openly from communion with the archbishop. You will ask what I mean by the term. I do not pretend to answer for other persons’ meaning: but what *I* mean is at least this, that I will say openly and solemnly I would refuse him the holy communion in my parish church, were he to come into it, and offer himself at the altar, and equally refuse to receive it at his hands, or with him. Nay, more, I think we have it as a weapon in our armoury, to be used, were it well advised and sanctioned, (and certainly to be used before one would think of giving up the Church of England as forsaken by

God,) to extend this same withdrawal from communion, from him who is “the head and front,” even to all those, at any rate of the clergy, who refuse thus to join in breaking off communion with him. However strange, however painful, however solemn, however awful it may be to say such things, I esteem it now an absolute duty not to withhold them, both that those whose steps are faltering, whose hands are made weak, whose feet are sliding, whose hearts are “failing them for fear, and for looking for those things that are coming upon the earth,” may know to what resources some among us at any rate are looking, and also (with all humility and due reverence would I say it,) that he who has been set as the highest ecclesiastic in our branch of the Church of Christ, may at least know to what extremities he is driving matters by such efforts for peace, at the expense of an article of the creed, and the faith once for all delivered.

It may be well to draw out even a little further still, some of the thoughts suggested by the foregoing observations. It is plain that, if it shall come to pass that we have to withdraw from communion with the archbishop, it will immediately and at once become also our duty to withdraw from all societies retaining him as their head. Rather, it will be their duty to remove his Grace’s name from their committees, and refuse to act under his presidency. If we may not hold communion with him, we may not acknowledge him as fit to preside over, or be a manager in, our church societies. In such societies as he now holds the post of president by annual election, or by some standing rule, the proceeding will be comparatively easy, because the next general meeting of the society can elect some other in his room, or annul the rule by which he is ex officio the president, or a member of the committee. In cases, if there be such, where he holds such position by charter, the matter may be more difficult and more perplexing, but I believe myself it will then be any and every such Church society’s duty to apply for an alteration in its charter under the new and unforeseen circumstance of the Archbishop of Canterbury having abetted heresy. But if such societies, or any of them, neglect or refuse to take these steps, it will immediately become the imperative duty of individuals to withdraw their names, and (so far as it may depend upon them,) break up their parochial or district associations in support of such societies as refuse to recognise the importance of keeping the faith of the Church of England pure, and thus become partakers in the guilt of allowing it to be stained. Many will say, no

doubt, “How can you contemplate, much more counsel, so violent and destructive a policy? What is the Church to do in missions and promotion of Christian knowledge, if such a plan be put in execution?” I can but answer, *if things come to that point, that we must break communion with the archbishop*, in order to save our name and keep our place in Christendom, then these consequences necessarily follow, and we have no choice. We shall never come to such resolve but upon the weightiest grounds:— grounds that will leave us no option as to following them out. We shall have no right to make matters of principle into matters of expediency or calculation of consequences. But if I did look to such, I should come to the same conclusion: for, whether is it better to paralyze our efforts for the present, if so it be, by the weakening such societies, or to aid them when they, those very societies themselves, will be actually spreading no longer truth, but error and sinful compromise? Whether is it better for us all that we be stopped in a career of sin, or that we run on in it, in a seeming prosperity perhaps, but in reality spreading wherever we go, and whatever we do, the heresy that the Church in which we live and serve, has *no doctrine* on baptism, and we think it best to take no notice of the fact; but still to hold willingly in the post of chief honour and authority him who has “*concurred*” in, who justifies, who acts upon the decision which thus assails the faith? No! indeed and in truth, if we do look to consequences, the very confusion, perplexity and distress which may ensue, do but bind upon us the more this line of action: they are the very things probably to “bring us to ourselves.” If we prove that our Church cannot do her work under the charge of heresy, surely it is well. No doubt all this is full of dismay and sorrow; but any thing is better than to be easy in or under heresy. And it is *by* distress, *by* suffering, *by* being made “to go through fire and water,” that we may afterwards be “brought out into a wealthy place.” It is by being exposed to any amount of misery and degradation that we are to be purified. If we never feel “the mighty famine,” and even be driven “into the fields to feed swine,” and have to “fill our bellies with the husks that the swine do eat,” and “no man,” perchance, “give unto us,” or pity us, it may be we shall never be brought to say, “I will arise and go to my Father;”—I will seek again in all its purity the early faith, even though it be through the sufferings also of those who early held it. And “*who knoweth but God* may be gracious unto us,” to forgive us our sins, especially the sin of lax holding, or practical denial of that early faith on so many sides; who

knoweth but He may bring us back into our good place in his favour, that He may give us “beauty for ashes, the oil of joy for mourning, the garment of praise for the spirit of heaviness;”—even the place of favoured children in our Father’s house, for the isolation of a “far country;”—nay, that He may even say, “Bring forth the best robe and put it on him, and put shoes on his feet, and a ring on his hand; and bring hither the fatted calf and kill it, and let us eat, and be merry, for this”—this Church of England so long, as it were, estranged from Christendom, is again at one with her; whereof let Christendom rejoice together!

The thoughts of such results as possible in God’s providence, if now we stand firm, and fight for the truth, must not make us forgetful of our present state and our present danger. I must repeat it, if these be so evil, we must look for sorrows before we expect relief; we must be ready to go through it; we must, like our divine Master, “set our face like a flint;” whatever reproaches be cast upon us, we must be prepared not to hide it “from shame and spitting.” We must not care for any loss or confusion in this time of rebuke, if only we may preserve the faith *for* and *in* our Church, whole and undefiled.

So strongly do I feel these things, that I can deliberately say I could even wish we might be laid under an interdict;—no baptisms, no marriages, no communions, no christian burials, rites, or ordinances be performed or celebrated among us, until we humble ourselves, and return unto our God, rather than the Church among us fell asleep, and all our zeal and fervour cool down, and we lose an article of the creed, and merely cry despairingly, “what can we do?”—recognising in all this no real difference, and believing in no real loss. Such an affliction, if there were any to put it on us, (and it may be it would be laid upon those who are hardened or careless, as the result of what we are now doing, if we be still and tranquil, supposing only an œcumenical council could be held to pass its judgment on these things, I say, such an affliction) might purge and purify us, might separate the wheat from the chaff, might prove *who* were infidels, and *who* believers in that other article of the creed, “the one Catholic and Apostolic Church,” and might show we were not without such “a remnant” at any rate, as might cause HIM to look upon us with some favour who is all mercy to those whom He perceives to be really bent, to bow no knee to Baal.

I cannot bring myself to leave these things unsaid, much as, on many accounts, I should be glad to do so; because they serve to show what kind of action I think we have it in our power to use, and prove of course how light a matter it must be to withdraw from this or that voluntary society; nay, comparatively how easy to strike off an archbishop's name from a committee; nay, even to withdraw from communion with him, and those who may uphold him, when placed in the scale with such a tremendous infliction as I have named. And although the effects of such withdrawal, if done by but one priest here and there, may be little indeed; yet, whatever line of action shall be deemed necessary, if it be taken by many in different parts, separated by distance and circumstance, but one in heart and action, this will, I think, produce so great a difficulty in the position of affairs, that the restoration of a convocation will be the only remedy. Whatever may be the difficulty, if it prove the Church of England cannot do its work whilst under the curse of heresy, that is, not until it shake it off, (for the which we trust we shall be found to strive unto the death,) it cannot be amiss. [\[112\]](#)

I cannot leave this subject without adding a few words, to explain how it is I feel compelled to say these things, and yet continue to hold preferment in the Church of England; how "I justify my deeds unto myself," in contemplating and speaking of the possibility of refusing the holy communion to her highest ecclesiastic, were he to present himself for it, in my parish church, and yet retain any parish or parish church at all. I have no doubt this will strike some persons as requiring, some perhaps as not admitting, explanation. But since what I have here said is not the result of petulant feeling or hasty resolve, but is said with thought and deliberation, it may be better to state the grounds on which I feel bound *both* thus to speak *and* to retain my living, than leave it to be supposed I have never considered whether there is any inconsistency in my conduct, and to each man's own mind to guess my motives, and supply my reasoning. Honestly, if I know my own heart at all, can I say, I do not think still to hold my cure of souls in the Church of England for the sake of the loaves and fishes to be obtained by so doing. I am ready and willing, if any man can show me my duty requires it in consequence of what I have written, to resign my living to-morrow. But I do *not* resign it, because I am fully persuaded there are times when, much as we should delight to pay to those in highest place superabundant honour and the most glad submission without scrutiny or

question of any kind, yet we are bound to institute inquiry whether we *can* do this, and not betray HER “who is the mother of us all;”—times when it is a duty to “withstand to the face” those who inherit even an Apostle’s robe;—times when we are forbidden to “flee away,” even if it were “to be at rest.” Then we must learn to bear not only the reproach of “envious tongues,” and the “evil report” of such as are adversaries to the whole cause we have at heart; not only the hard thoughts of those whose utmost charity is only able

“in see-saw strain to tell
Of acting foolishly, but meaning well;”

but even the misconstruction and condemnation of some, who do go with us on the catholic side a certain way, but who are alarmed when anything is proposed or done beyond the ordinary routine of a gentle resistance. Nay, even more than bearing these things from others, we are constrained to become, yet in no ill sense of the word, casuists ourselves, and weigh minutely what that is which in principle we are bound to give to them “who sit in Moses’ seat,” and where we must stop, lest we should be found to break a higher command than theirs “by doing after their works.” There are, no doubt, difficulties on the side of *action*, lest we be not sufficiently observant of the “powers that be.” There are difficulties on the side of *inaction*, lest, while we sleep, “tares may be sown” which we shall never be able to eradicate. So we come to be obliged, even against our will, to consider *what* deference, *what* authority, *what* guidance of affairs, must *needs* be given to a chief ruler, simply for his office’ sake. And the first thought which meets one is, that undoubtedly no Archbishop in the English Church can claim to be to us a Pope; the second, that matters are much simplified as to compliance, if it be any fundamental of Christianity, any article of the creed, which is brought in question. For then, history, and the uniform tradition of the Church, alike teach us that it is not merely the *right*, but the *duty*, not merely of the *priest*, but of the *lay people* also, to contend for the faith openly and uncompromisingly, by whomsoever it may have been assailed, and under whatever circumstances. The word, too, which is above all words, speaks not of gentle resistance, or moderate opposition, or needful quiet, or charitable construction: but is, “contend earnestly;”—“resist unto blood;”—“quit you like men, be

strong;”—“accept no man’s person”—fear no man’s rebuke;—regard no man’s favour;—consult no man’s feeling;—“wish him not so much as God speed,” be he who he may, who would give away God’s honour and God’s truth. “If thy brother, the son of thy mother, or thy son, or thy daughter, or the wife of thy bosom, or thy friend which is as thine own soul, entice thee secretly, saying, Let us go serve other gods, which thou hast not known, thou, nor thy fathers:”—(let us make a new faith other than that once for all delivered:—let us change the creeds of the Church Catholic) . . . “thou shalt not consent unto him, nor hearken unto him; neither shall thine eye pity him, neither shalt thou spare, neither shalt thou conceal him.” Well, surely, have we been reminded, “It was a simple bishop who addressed the First Patriarch of the Church with the *Anathema tibi, prævaricator Liberi*, when that Pope had tolerated Arianism; they were simple priests who appealed against the Second Patriarch of the Church, and him too a saint, when Dionysius of Alexandria appeared to deny the Catholic faith concerning the Son of God; it was a simple layman who attacked the then Second Patriarch of the Church for heresy when Nestorius broached his errors on the Incarnation; and both bishop, priest, and layman have received eternal honour, as having been ‘valiant for the truth upon the earth.’ In our ordination oath, to ‘be ready with all faithful diligence to banish and drive away all erroneous and strange doctrines, contrary to God’s word,’ I find no proviso, ‘except they shall be supported by superiors.’” ^[116] Surely, then, to refuse communion to one, however high in station, is no such great thing, where the faith is put in peril. Alas! I fear those who talk most of peace and quiet, who are, more than anything else, afraid lest Churchmen should do *too mush*, forget, or it may be have never realized, that it is *no less than the faith* which is now endangered. And if there is one thing more than another which now disquiets and disheartens thoughtful, earnest-minded, far-seeing men, it is this;—to perceive that there are numbers who are not themselves in the least heretical on baptism, who yet say that all we need is rest; whose great anxiety is that excitement should cease, and quiet be restored; who believe all would be well if these “unhappy differences,” as they call them, could be forgotten; these “sad animosities,” as they appear to them, could be laid aside, and all things return into a peaceful current. Alas! “Peace, peace, when there is no peace,” is the order of the day, I fear, with only too many. Oh! that I could “lift up my voice like a trumpet,” to arouse such, before they give up, step by step, to the encroaching liberalism of the day

the very vantage ground it covets, and be only turned at last, and *made* to stand at bay, when they find they can recede no further without being pushed absolutely down the gulph; discovering this, however, only when it is too late, because they will already have surrendered their strongholds, and yielded up God's armour, and then find, to their sorrow and dismay, that even such weapons as they may still have left are profitless and vain, the space in which they are pent up being all too strait to allow them rightfully to wield them. Oh! that I could awaken the sleeping heart of this English people to feel for God's honour as for their own, or for their country's! and to know, if they would indeed win His battle, they must, one and all who have Catholic hearts, throw themselves into the very midst of the fight, and strain every nerve, and use every weapon, now whilst there is time, as I believe, in God's might, and by His help, to win it. Oh! that we all knew we may not leave our cause to fight for itself alone, (which is to desert it,) and so provoke Him our Saviour and Defence to forsake us, and permit us to become at last as Ephesus and Smyrna, as Pergamos and Thyatira, as Sardis, Philadelphia, and Laodicea.

I do not, then, resign my cure of souls, because I feel God has appointed me to be one in this warfare, and I may not give away anything He has put into my hand wherewith to bear my part in it. I do not resign my cure, because I think I should not be doing my Lord's work;—I should not be fighting his Church's battle;—I should not be using his weapons;—I should not be feeding his flock;—I should not be avouching his truth;—I should not be bearing, in any appreciable degree, the same testimony to it, were I to resign my cure of souls, and then say, "I would not admit such or such to holy communion *if I had a parish.*" No! let it be known and felt that as a priest, in the exercise of the priestly office, I do what I do, and promise what I promise. And although I have allowed even herein I am but speaking prospectively of what may *become* our duty, I repeat that I dare not withhold my thought of what possibly is coming upon us, both that we may all be prepared if it come, and that those who have most power to avert any such necessity, may see how very urgent and extreme is the crisis in which our (and their) lot is cast.

I know well how the world will take my saying, and meet my argument. It will say this at least, if it say no worse, "Granting what you urge has a certain force and consistency in itself, if you were merely a priest; how is it

reconcilable with being a priest in the diocese of Sarum, and province of Canterbury? how is to say these things, compatible with the canonical obedience which you have sworn?”

I might answer, perhaps, that I know not that I *have* sworn anything to the Archbishop, since I never was in his diocese, either in Chester or Canterbury; but this answer would be possibly insufficient, even for my own case, as there may be an implied canonical obedience through the suffragan bishop to the metropolitan. Moreover, if it cleared other dioceses, and the priests in them personally, it would be no general answer, but leave a burden on the consciences of those who minister in the diocese of Canterbury. I will therefore make a further, and, I trust, a more complete reply. I say, that what I myself, and every priest among us, has subscribed to, is obedience to his bishop “in things lawful and honest.” Can this ever bind me to acquiesce in expunging an article of the Nicene creed? in not contending to the *utmost* against the heresy that our Church has no dogmatic teaching on baptism at all? You may tell me, the law will take another view of what is “lawful,” and compel me to subscribe to it. When it does, it will be time enough for me to think what I shall next do; and I trust I shall not be forgetful that there is an authority higher than the law of man. ^[120] Therefore this I will say even now, (indeed I have already said it,) if the time ever come when this *Church* and realm shall so receive doctrine that we cannot hold the Catholic faith, and remain members of the Church of England too, one thing at least will be clear, that we must then give up the Church of England, and I will join with you in seeking somewhere else a purer faith. But I do not believe as yet, whatever *this realm* may think, that *this Church* hath acknowledged the Gorham theology to be her faith; and I will say this besides, if ever it shall come to pass that it is about to be ruled, not to be “lawful and honest” to separate from any that openly abet or foster heresy; that our subscription to “obey in things lawful and honest,” binds us to a bishop or an archbishop so committing himself, so aiding and abetting the permission of heresy, then will a new phase open upon our Church; then will that great argument of the day be ranged on our side, “Take heed what you do, or three thousand priests will resign their cures, and seek some other shelter!” Yes! then indeed will it be, (I doubt it not) that some of our spiritual fathers will make it plain to all men wherein our great “strength lieth,” and show that we depend not upon “an arm of flesh;” that there are

men of all ranks and circumstances among us, willing to “count all things but loss,” so they may “keep the faith,” and that in deed and in truth *the Church* is separable from *the establishment*. In the mean time, as I have said, I find myself, not as yet bound down to the decision of the Privy Council, nor ensnared, by having undertaken to minister in my cure as “this Church and realm hath received” doctrine, because, even though this realm may have received that judgment as legal, I think the Church has not ratified it as valid. I find no burden upon my conscience in having subscribed to obey my ordinary “in things lawful and honest,” nor do I perceive how I shall find it, even though I may come to think it unlawful to hold communion with the Primate. And I find no cause to resign my cure, though I have deemed it necessary to say these things.

There is one subject more, which I cannot make up my mind to pass over. I have said the very struggles which we make for freedom, will, in their making, test our Church. This itself is used as an argument by some, against exertion; at least against exertion for the objects which most Churchmen now advocate—the regaining for her, her free synod or convocation. “Convocations and Synods.—Are they remedies for existing evils?” is the title of a thoughtful pamphlet which I have seen. The “Anglican Layman” (such is the author’s description of himself on his title page) says, the remedies which he has heard suggested appear to him “one and all of a dilatory and inconclusive character, in part hopeless, in part useless, and in part of doubtful propriety.” ^[122] I will not swell what I have already written by any comment on the first two of these objections; on the last I must say something; and, to introduce it, I will make a further extract from the pamphlet in question:—

“Suppose the convocation assembled with universal consent, or even suppose a properly constituted synod to be convened with the approbation of the State, or suppose the united episcopate to be assembled without it, would the decision of any or either of these be really *authoritative*? In what sense would it be so? Would any or either of the parties in the Church consent to be bound by it? What is meant by an *authoritative decision*? What do the ‘Resolutions’ I have quoted mean by an ‘*authoritative declaration*’? What does the Metropolitan Church Union mean by ‘*the only body possessing authority in controversies of faith*’? What does the Bishop of London

mean by '*finally settling the question by a synodical decree*'? Would you be bound by it?—Should I be bound by it?—Would the minority of such an assembly be bound in conscience by the majority?—Would the majority itself be bound by the decision in any permanent sense, because they were the majority? In fact, who can doubt that there is on both sides a determined foregone conclusion on the point in dispute, and that no one individual on either side would hold himself bound in conscience to abide by the decision."

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"But it will be said—it *is* said, 'although the decision, if wrong, will not bind us, it will *bind the Church*, and if the Church should commit itself to heresy, our course would be plain.' Now, a great deal of very solemn and serious language is used in speaking of the Church of England, and of the duty, and allegiance we owe her, much too solemn indeed, and too serious, unless we mean what we say; she is 'the Church of our Baptism,' we are her 'children,' we call her 'our Sion,' 'our beloved Church,' 'our holy Mother,' we profess to be jealous that any one should intrude upon her office as a 'teacher of the Truth,' or speak in her name without her commission. All this implies respect, deference, an admission of her right to guide us. Now, if it be true that whatever our Mother may say, we shall one and all turn a deaf ear to her voice, unless she speaks in accordance with our own previous convictions, that we are reserving our objections to her authority till we hear her judgment—that we intend to test her authority by her judgment, is not our language of reverence and affection somewhat unreal?

"To assemble the Church in Convocation or Synod, for such a purpose as this, would be to place her in a most undignified position, that of exhibiting herself for approbation. We should be treating her as a mob would treat a popular leader; if she should speak our language—'hosanna,' if not—'crucify.' We should have the air of enquiring of an oracle, whereas we should only be questioning a suspected delinquent. We should seem to ask advice, but approbation of our own predetermined opinions would be all the answer we should condescend to receive.

* * * *

“If the assembling of the convocation or synod would in any real sense ‘settle the question,’ if its declaration would be really ‘authoritative,’ if the members of the Church would be religiously bound to listen to its voice as that of the teacher of truth, or even if it would be a step towards a decision by a higher tribunal, that may be a reason for assembling it; but if it is to bind no one, and its decision is only sought for as a test of its own vitality, then I should be disposed to ask whether such a proceeding is not of very *doubtful propriety*.

“No doubt, it might be quite right to force a subordinate court to speak, in order to arrive at a decision by a higher tribunal, but to force a *final* court of appeal to speak when you have no intention of obeying it, seems to me to be an act of the same kind as pleading before, or sitting upon, a tribunal, against the authority of which you intend to protest, should its decision displease you.” [\[124\]](#)

I have cited this somewhat lengthy passage: but it will enable me to make my own remarks the briefer that I have thus fully stated the objection. The answer to its whole drift seems to me to be this, that no synod or convocation of the English Church is, or can be, a “final court.” This writer seems to have let it escape him that, though we may have *among ourselves* no higher appeal, yet there is one in the world. The Church Catholic, and especially It in council, is an authority to which all provincial synods are subject, and to which our deepest reverence is due. The writer in question does say indeed, *if* a decision by convocation would be “a step towards a decision by a higher tribunal,” it would be a reason: for convocation being assembled; not however, I think, as contemplating any higher tribunal than our convocation, but merely as shewing the impropriety of its being called together at all. In the next paragraph he explains this:—“No doubt it might be quite right to force a subordinate court to speak, in order to arrive at a decision by a higher tribunal; but to force a *final (sic)* court of appeal to speak,” (evidently assuming this quality to belong to the English synod or convocation) “when you have no intention of obeying it, seems to me to be an act of the same kind as pleading before, or sitting upon, a tribunal, against the authority of which you intend to protest, should its decision displease you.” Now, my view certainly is not merely that we should

protest against (though we will not contemplate) any heretical decision by convocation; but, if it were so, should also appeal from it to the voice of Christendom. “The only superior known to the local Church is the authority of the Church universal.” ^[125a] Surely of that authority we must not be forgetful, whatever be the difficulties at present in the way of an appeal to it. “Is the Church of England so isolated from the Universal, that the faith of the Church universal has no influence unto its theology?” ^[125b] And yet this point seems to be forgotten by the otherwise careful writer of the pamphlet in question. And in forgetting this, of course he must do wrong to the position of the Church of England, as well as, I fear, discourage those who are labouring for her freedom. We are but a part of Christendom, but this claim to allow no appeal from our convocation, seems to arrogate to ourselves to be either the whole, or so capable of standing by ourselves, that we desire to be freed from any subordination to the whole, which would be, in fact, no less than to make ourselves “guilty of a formal schism from the universal Church of Christ.” ^[126] We must not allow ourselves to forget there is such a thing as an œcumenical council of Christendom, and whatever the difficulties in the way of its assembling, yet to it, as I believe, all true hearts should turn. Certainly, for myself I can say that this, as the great remedy for all our troubles and distractions, and “not for *ours* only,” but for those of Christendom at large, has been constantly present to my mind these many years. That God of his mercy, and in His good time, would grant us a general council to ease and compose our differences, and to restore the unity of Christendom, and, if it come, grant us all the due mind of submission to it, has been now for no short period a portion of my daily prayers; and I think there is no just ground to decry the petition as either fanciful or wrong; at least we have the warrant of some among us of great name who have not thought so. “That I might live to see the re-union of Christendom,” says Archbishop Bramhall, “is a thing for which I shall always bow the knees of my heart to the Father of our Lord Jesus Christ.” * * * “Howsoever it be, I submit myself and my poor endeavours,” he continues, “first to the judgment of the Catholic œcumenical essential Church, which, if some of late days have endeavoured to hiss out of the schools, as a fancy, I cannot help it. From the beginning it was not so.” * * * “Likewise I submit myself to the representative Church, that is, a free general council, or so general as can be procured, and until then to the Church of England, wherein I was baptized, or to a national English synod.”

^[127] I do not say whether the confidence with which Bramhall trusted an English synod, was excessive in his day, or would be excessive in ours, but assuredly he recognises the appeal to a higher court; and this is exactly what I affirm we must bear in mind there is, if we seem to put our own Church to the test, by demanding that her convocation shall again be allowed to meet. It may be supposed, indeed, that an œcumenical council is at present hopeless, and therefore that all mention of an appeal to it is out of place; but I do not think this, and for two reasons; in the first place that there are certain points of doctrine which have been so definitely ruled by general councils, that we *know* on them there could be no variation; and in the second, that I see no ground to despair of another such council in God's good time being called together. ^[128] Even in the mean time the thought of such a council is neither impertinent, nor unpractical: for I suppose no one will hold that a national synod or convocation may determine *anything* as to its Church's doctrine, and yet no man be justified in leaving her communion. Such course however must be taken, to be taken rightly, not on the impulse of a man's own will, or the bent of his own mind; but only in obedience to what Christendom *has* definitely ruled, and in implicit submission to what she would now say, could she meet in free and general council. Such right of action, so guarded, I think must be allowed, for if not, it would follow that, during the suspension of the voice of the Church Universal, any provincial Church might commit herself to Socinianism, nay, to Deism, or Pantheism, under the name of Christianity, and yet no man have even his individual remedy against a body so lapsing from the faith, until a general council could pronounce upon the matter. This is clearly a *reductio ad absurdum*, and therefore we may and ought, (though we will never contemplate our Church authorising or affirming heresy in her synods or convocation,) yet not to be afraid to strive for their revival, as though there were no appeal above her, and no solution if she should fail under the trial. When too we remember what we are in danger of sanctioning by acquiescence, and in what a position we may thus place ourselves for the judgment of an œcumenical council upon us when it may come, we see all the greater cause to wish for the restoration of our synods and convocations, nay, to account it an absolute duty which, thank God, needs no calculation of results at all, to run the risk, if risk it be considered, of what our Church will say, and positively claim by them. In order to clear herself, she *must* be allowed to speak.

Further, the “Anglican Layman” admits if convocation’s meeting “would be a step towards a decision by a higher tribunal, that may be a reason for assembling it.” I take him at his word; I ask him especially to consider if this be not one of the results to be expected, and, (if he shall, upon consideration, be satisfied on the point) then I ask him further to join in the efforts which are being made to obtain the revival of our Church’s synodical functions.

I have said what the higher tribunal is. I have said I think we ought to work even now with a view to its judgment. Suppose a general council were to be held;—say then, whether the determination of these questions, which now distract us, would not be a step towards a final resolution of them all by its authority. For, say first, the English Synod or Convocation boldly asserted the catholic verity on Baptism, would not this be a great step towards our being received openly and unhesitatingly into the bosom of Christendom, when her council shall meet, and say, as say it must, in what light the Anglican communion is to be regarded. Or suppose (let me be forgiven for the supposition in the way of argument, and here necessary to it,) that the result of her counsel were an ambiguous or heretical determination. Surely even this would not be without its use in limiting the points in issue, and help (no small consideration) all Catholic-minded men among us to acquiesce in any censure which Christendom might pass upon us. This, I cannot regard as an unimportant gain, since owing to our isolation, and I fear I must say, our national prejudices, there might be great danger, that even the decision of an œcumenical council upon our position and our duties, would hardly be received as it ought to be even by all those who are striving humbly after truth. But if then we must be condemned (I am not saying it would be so; again and again I must repeat it; but if it were so,) it would surely be something for the comfort and guidance of us all, that it should be on plain and undisputed grounds; that our Church had spoken, and spoken amiss; that she had tampered with the ancient faith, and changed the primæval creeds. Though I do not say any of these things will come upon us, yet I do think the position in which we stand without convocation, and the dangers of, what would be called in human affairs, a downward policy, are so great that they justify us in speaking out very plainly, and in looking to help from Christendom in case of need. I do believe never till we get to look out of ourselves to Christendom at large,

never till we remember our due place in it, never till we are ready to accept its decrees better to define our position, and help us in the practical restoration of our teaching to what it ought to be, shall we be in that right mind and heart, which is waiting duly for the Bridegroom's call.

I am quite prepared to have these remarks called visionary and unreal; and all dependence on, nay all reference to, the Universal Church, unpractical and absurd. But "none of these things move me," and I am, though I trust, no fanatic, yet hopeful of the help of God for those who will try to help themselves. As I have said before, I cannot think the expectation of a general council is chimerical. I cannot believe if it come it will be useless. I agree with you in saying, "we have no right to expect an audible or visible interposition of Almighty God," to direct us in our difficulties. "We must not wait to see his handwriting on the wall, or to hear his voice among us;" ^[131] but I have yet faith enough in miracles to believe, if that be one, that God may grant us the miracle of Christendom again in council, and make it the means to heal all our distempers, and bind up all our wounds. Of this hope and this faith, no man shall deprive me by the mere calculations of human policy, or by the perverseness of an un-Catholic despair.

And now, my dear Friend, if you have followed me through these pages, as I know with all kindness and attention you will have done, you will see, in some measure at any rate, why I must bitterly lament and utterly condemn the steps which you have taken. I cannot see that the Church of England has forfeited her trust. I cannot, therefore, believe God has forsaken her. I cannot think that He bids us leave her. I have not indeed concealed my opinion of the dangers which beset her. Humanly speaking, her *safety* lies in their being known and felt by her children; but I firmly believe there is yet a battle to be fought *in* her, and *for* her, which is worth all our energies and should engage all our hearts. No man knows better than you what is to be done: no man better how great is the stake: no man better how glorious the result, if God grant the battle to be won. Alas! that it should be bitter now to say it, no man has fought more nobly in the ranks of the English Church: no man more distinctly or with less hesitating lips has enunciated her dogmatic teaching: no man has contended more boldly on the side of God, and the creeds, and the Catholic faith than you have done in this our battle for life and death! Oh! that you might even now once more "cast in your lot among us;" confess you believe you have been blinded by care and

grief, and so been at least over-hasty in your resolves; and throw yourself once more into the ranks of the chosen warriors among us, and into the battle with us. Believe me,—nay, rather judge it for yourself—great things are coming on apace: things which will make men’s course plain before their face, without their being over-forward to decide them in isolation for themselves by the mere act of their private judgment; and perchance if we may but be wisely guided, and have patience to endure, we may both come out ourselves “as silver purified seven times in the fire,” and be the means, though all unworthy, to unite Christendom again in one. Oh! what heart can exaggerate the beauty with which our Church shall again shine forth, if she can retain the good that is in her and discard the evil! How nobly will then appear the characteristic virtues of the English mind;—its love of honesty and truth;—its conscientiousness and repudiation of pious frauds;—its loathing disbelief in the avail of expiation of sin by mere formal observances, the sinner remaining unrepentant all the while! If these qualities may be fostered, and its characteristic vices;—its arrogancy and pride;—its unbounded reliance upon itself, and the miserably ignorant as well as utterly destructive habit and abuse of private judgment: therefore its refusal of Catholic teaching, and practical denial of sacramental grace; if these can be eradicated, how fairly indeed shall the Church of England shine forth once more, as “clothed in white raiment,” as able “to save alive the souls” committed to her, as “the ransomed” and “well-beloved” of the Lord! “as a fountain of gardens, a well of living waters, and streams from Lebanon.” But for this (though we know God needeth no man’s help, and can spare *whom* he pleaseth, and his work not the less be done, and his counsel stand,) yet we seem to be able to spare no man from our ranks who has ever fought upon our side. Oh! (with a breaking heart, one is almost tempted to exclaim:) Oh! that we could but have with us now, all those who in these last five or ten years have “lost patience” in our camp. What with them, could they be restored to us, might we not seem ready to attain, even against all the “principalities and powers” that latitudinarian indifference or infidel philosophy may array against us? But, I may not indulge in such longings. I may not ask, nor think of, nor hope, even *your* return. I do not ask it, for I know it is a thing you may not grant for asking. I will not think of it, for “vain are the thoughts of man!” I will not even hope it; for why should “the heart be made sick,” when so much work is to be done. But I may and will *pray* for it, if it be His gracious will, who is able to give more

than we know how either to ask or to think, “whose way is in the sea, and whose paths in the great waters, and whose footsteps are not known.”

Believe me, my dear Maskell, yours, though in sorrow, still in affection,

MAYOW WYNELL MAYOW.

APPENDICES.

A. p. 15.

IT should be observed, that as to the point of encouragement to “patient waiting,” I have in the text much understated the force of the argument to be drawn from the ecclesiastical history of the fourth century, inasmuch as even after the Council of Nicea, there were fresh troubles and disturbances upon the same doctrine, which were not settled for more than fifty years. To use Mr. Keble’s words (on July 23rd), “The Church waited till the Council of Constantinople, A.D. 381, under all sorts of interruptions and anomalies, charges of heresy, and breaking of communion.” My purpose, however, in referring to that period of history being chiefly to point to the Nicene Creed as an instance of a declaratory act, explanatory of the Apostles’, I did not think it necessary to pursue the matter further than A.D. 325.

B. p. 22.

“It is plain that the meaning of a mute document, if it be tied to follow the utterance of a *living* voice, which shall claim the supreme right of interpretation, must vary with its living expositor.”—MANNING’S *Rule of Faith*, (1838). App. p. 85.

“But neither can it be admitted that if the justification of the reformers is to rest on such grounds as the foregoing, their reputation can owe thanks to those who would now persuade the Church to acquiesce in a disgraceful servitude, and to surrender to the organs of the secular power the solemn charge which she has received from Christ, to feed his sheep and his lambs: for the real feeder of those sheep, and those lambs, is *the power that determines the doctrine with which they shall*

be fed. Whether that determination shall profess to be drawn straight from the depths of the mine of revealed truth, or whether it shall assume *the more dangerous and seductive title of construction only; of a license of construction which disclaims the creation, the declaration, or the decision of doctrine, but which simultaneously with that disclaimer has marked out for itself a range of discretion which has already enabled it to cancel all binding power in one of the articles of the faith,* and will hereafter as certainly enable it to cancel the binding power of all those which the first fell swoop has failed to touch.”—*Letter to the Lord Bishop of London, by the Right Hon. W. E. Gladstone, M.P.* p. 60.

See also Archdeacon Manning’s recent letter to the Bishop of Chichester, where the same subject is again treated in the most convincing manner, pp. 35, 37.

C. p. 34.

It will immediately occur to the reader that this particular point as to the burial service, as well as many others here touched upon, have been already handled in the most masterly way by the Bishop of Exeter, in his letter to the Primate. I suppose I hardly need say I have entertained no so absurd notion as that I could surreptitiously plagiarize from such a source; but I may perhaps be allowed to explain, that I should not have ventured upon the same ground at all, had it not been for a further object in my remarks than that which appears to have been most prominently before his Lordship’s mind in writing. I have been concerned in my particular argument, not so much to clear our services from being supposed to require the “charitable construction” asserted by the Privy Council, as to draw out in somewhat greater detail the points which show the marvellous inapprehensiveness (as it appears to me) displayed by the Court on the whole subject-matter with which they had to deal.

D. p. 35.

“THE question must be decided,” says the Court, (Judgment, p. 9,) “by the articles and liturgy, and we must apply to the construction of those books

the same rules which have long been established, and are by law applicable to the construction of all written instruments. We must by no means intentionally swerve from the old established rules of construction, or depart from the principles which have received the sanction and approbation of the most learned persons in time past, as being on the whole, the best calculated to determine the true meaning of the documents to be examined.” It may be worth while, in reference to their treatment, especially of the office for private baptism, to append here a few words of the rule of construction as laid down by Blackstone. “The construction shall be upon the *entire deed*, and not merely upon disjointed parts of it, so that *every part*, if possible, shall *take effect*, and *no word but what may operate in one shape or another*.” (Comm. ii. 379.) It is manifest there was *no impossibility*, nay, *no difficulty*, in such a construction of the office for private baptism as should allow “*every part*” to “*take effect*,” such also that there might be “*no word but what should operate*,” so far as merely making that service agree with the other; the only difficulty was to give every word its effect, *if both were to lead to a particular conclusion*.

E. p. 46.

ON a matter of so grave a character as that referred to in this place it seems necessary to give at rather more length that part of Lord Denman’s judgment (in the case of Dr. Hampden in the Queen’s Bench) delivered on the 1st of February, 1848, which states his reasons for refusing to let the writ issue, when two of the judges of his court were in favour of doing so.

“Now comes the question which presses most on my mind. Having stated my reasons for the opinion which I deliberately form, and conscientiously entertain that this has never been at any time the law in the Church of England, I must be of opinion that the court ought to refuse the writ of mandamus; but upon that opinion I have had the greatest difficulty, and have felt the greatest possible hesitation in acting, because I feel the authority of my two learned brothers, and the ungracious appearance of refusing the opportunity of inquiry. In any ordinary set of circumstances, in the case of an inclosure, of a railway, or matter of property, we should have no question what ever that the doubt of any one on the bench would have made further inquiry

desirable. I should have instantly agreed. A writ of error would lie in that case to correct any opinion that might be shown on more discussion to be erroneous. But every judge must act on his own conviction. I own that my opinion is so entirely settled, and, I must say, so entirely unchanged by what I have heard of the argument to-day, that feeling the utmost disposition to do all that can be done to show my respect for my learned brothers, I do not think that I can consent to say for my part that this writ ought to go. I think it ought not. * * * * * I am satisfied that the only effect would be to keep alive the dreadful agitation and frightful state of religious, or rather, let me say, theological animosity, which it is impossible not to observe in this country. There would be a delay of at least two years; probably four more days would be consumed in argument, and we cannot tell how much more when it would come into the court of error. The bishopric all that time would be vacant, perhaps other vacancies might occur, and no doubt the example here set would be followed; and in every case I should expect, in the excited state of men's minds, that the archbishop would be called upon to summon all mankind, to hear whether they had anything to say against the bishop elect, and to open a court, that would probably never be closed."

* * * * *

"Now, under all these considerations, feeling the utmost respect for my learned brethren, and the greatest regret that we do not take the same view, I must own that I feel some deference is due also to the high person who is named as the defendant in this rule. Some deference is due to those who certify the fitness of Bishop Hampden for the office to which he is elected. Still more deference is due *to the peace of the Church*, and *to the tranquillity of the State*. It seems to me that we should be *putting every thing to hazard and leading to consequences which it is impossible to foresee*, if we, who are firmly convinced that there is no such law as that upon which these parties seek to act, encouraged the smallest doubt as to its existence. Reserving my opinion on that point till I had heard all the observations of my learned brothers, and keeping my mind open to the last, and free to say that this is a question which ought to be discussed, I must fairly say, with

all respect for my brother Coleridge's admirable argument, that it has confirmed me in the opinion of the danger of exposing the Act of Parliament, and the most simple construction of the plainest language, and the most inveterate and universal opinion on its effect, to the speculations of those who will bring their forgotten books down, and wipe off the cobwebs from decretals and canons, before they can find one argument for disturbing the settled practice of three hundred years.

"In my opinion this rule ought to be discharged."—*Rule discharged. Lord Denman's Judgment in the Hampden case. Report, by R. Jebb, Esq. pp. 495, 496.*

I have no doubt at all, that the honest conviction of the Lord Chief Justice was, that his view of the law was the sound one; nor any, that he thought he was doing rightly in using his power to refuse the writ; but there can be no doubt on the other hand (for he explicitly avows it) that the reasons upon which he arrived at such conclusion, and reversed the universal practice not only of his own court but of every court in Westminster Hall, were a *calculation of consequences*, and a regard to *future contingencies*, as they seemed dangerous or advantageous to his eye: and this is precisely the point of view in which I have desired to lay the matter before my readers in the body of my letter. It will be observed that in nothing which I have here said am I impugning Lord Denman's Law, or giving any opinion as to the soundness of his view of the matter then in question before the Court of Queen's Bench. I appeal not to any matter of opinion, but to matter of fact; to the incontestible fact, that all the precedents of that and every other court of law in this country for a very long period, were set aside by his Lordship on that occasion. I give no opinion at all, save that to do such a thing upon a ground of expediency, applying, as it appeared to him, to the individual case, was a course calculated to shake persons' confidence in the administration of the law in cases where the Church is affected. Let no man therefore say, "What are you, to set up your opinion against the Chief Justice of the Queen's Bench?" I say, again, I set up no opinion, I appeal to no matter of opinion at all, but to the undisputed matter of fact, that the usage of the court was at any rate so set aside and set at naught.

I CANNOT refrain from quoting here a few lines from the very able speech of the Chairman of the Meeting of July 23, so singularly apposite and illustrative do they seem to me of this passage in my letter written some time previously.

“An instinctive reverence for the law, and a well-founded confidence in the judges of our land exclude from the minds of some men even the thought of questioning the propriety of this judgment”—(i.e. of the Committee of Privy Council). “It is painful to shock this natural sentiment—but when such grave interests are at stake, we must not allow them to escape the responsibility to which they are summoned.”—*Speech of J. G. Hubbard, Esq. at St. Martin’s Hall, July 23, 1850.*

G. p. 71.

I AM aware it may be said this act (1 Elizabeth, c. 1) was repealed when the High Commission Court was abolished; but it has been held, I believe by Lord Coke (I know I have lately seen it referred to, though I have not marked the reference,) that though no longer binding as law, it would be accounted probably of some authority to show the mind in which law would deal with heresy, and as a guide to a judge in any such matter. Add to which, this law indicating what was, *at any rate*, and *at the least*, to be adjudged heresy was restrictive, not augmentative of the offence. Even so, as we see, it allowed the authority of those first four general councils, and therefore by its enactment is a special witness for their reception by the English law. And its repeal by no means destroys the force of this argument in their favour, because the law itself having been, as I have said, restrictive, and no other act being passed upon its repeal to limit again the judgment of the courts, they would revert at once to the former rule, and the Church gain instead of losing by the proceeding. In other words, the statute (1 Eliz. c. 1) shows what at all events the law, when most bent upon restriction, acknowledged as to those general councils, whilst its repeal only removes a limitation, and restores things again to their ancient footing. This is well stated in the following extract:—

“Our church law acknowledges many other heresies besides those which were condemned by the four first œcumenical councils. The clause in 1 Eliz. c. 1, which I quoted as the least stringent measure of heresy ever allowed among us, was repealed when the court which was restrained by it (the High Commission Court) was abolished; and now, whatever was heresy before the reformation is still heresy, (by 25 Hen. 8, c. 19, s. 7,) unless there have been special enactment to the contrary. Now there can be no question that the African canons were in force here before the reformation; for, whether received at Chalcedon or no, they had been severally received by the whole Church, both east and west. Therefore it still remains to be proved, ‘that a bishop or archbishop, acting on the late decision, will not involve in direct heresy both himself and eventually all in communion with him,’ by the very law of the Church as at present existing.”—*Letter, J. K. Guardian, May 1st. 1850.*

H. p. 128.

I WILL venture to print in this place, as illustrative of several points touched upon in the preceding letter, and as showing that many of the views there set forth have not been of recent growth, or merely taken up as the readiest expedients to suit an emergency, part of a sermon preached (in my turn, as Master of Arts) before the University of Oxford. The sermon was preached upon St. Barnabas’ day, 1845. The early part, of which I do not here print more than a few sentences, was occupied with some considerations relating more immediately to the particular festival, and to the thoughts suggested as to conduct under ministerial discouragements by the “sharp contention” between Barnabas and Paul. The latter part is taken up more directly with general topics, as to our own difficulties and trials, and with some mention of the hope of a remedy by means of a general council. These few remarks will sufficiently introduce the extract which follows.

“Ye have need of patience.”

Hebrews x. 36, former part.

PATIENCE would be unnecessary if there were no trial: consolation would be out of place if there were no affliction. Without these, “the

son of consolation” would not have found his office, nor received his distinctive name, in being added to the number of the apostles. But He who knew that he came, “not to send peace, but a sword;” whose advent was marked with blood, and his very birth, though it were “glad tidings of great joy which should be to all people,” yet gave occasion for the voice of “lamentation, and weeping, and great mourning;” whose own end was even of a piece with this beginning, when He had “blood sprinkled upon his garments,” and all his “raiment stained” therewith; the intermediate time, too, of whose mortal life was one of such hardship and privation that He had “not where to lay his head;” He who foretold that if men called “the Master of the house Beelzebub, much more would they so call them of the household;” who *warned* his disciples that they should be “*as* their Master,” and *promised* them that they should indeed “drink of his cup, and be baptized with his baptism;” HE did not fail to supply grace and consolation; a fitting and sufficient Paraclete for the nature which was thus to be tried, and the circumstances which should try it. And though, in the only full and perfect sense, the HOLY GHOST is *the* COMFORTER, and that divine PARACLETE; yet also in a true, though inferior sense, as an instrument to the same end, such as the ever-blessed Son of God saw to be needed, it was appointed there should be one, even called by the same name, “a son of consolation,” in that Joses, surnamed by the Apostles, Barnabas. * * * * *

But here I would extend our subject, and come more particularly to consider some of the trials and discouragements which we (weak and unworthy followers of the holy apostles) meet with in our ministry. “Ye have need of patience,” says the apostle. Let me then speak to-day, brethren, upon some of those trials and discouragements which beset the Church “in these last days when perilous times have come.” It is far too wide and large a subject to be fully treated of. I shall but touch on one or two points as I have found their pressure, and in so doing shall speak familiarly of the parochial charge.

Now we know well that a distinctive character of the Church’s teaching is this, that she instructs her members that God’s grace, and therefore salvation, is not given (as we may say) at random, and by a mere inner motion of each man’s heart or mind; that our grafting into

Christ, and our growth in Christian stature and grace (I mean, of course, according to God's ordinary mode of dealing with us, which is what only we have practically to consider;) that these blessings are not given according to a mere inner motion of each man's heart or mind, but that (of God's will and commandment, and for our good) they are, I say, in ordinary rule, linked and tied to ordinances: to a certain method of bestowal, and a certain method of reception; to his Church, and to the ministry of his word and sacraments. In other words, he saves us, not after a manner of each man's own heart's devising, *but by covenant*. If we would have his promises and his grace, we must seek them in the way of, and according to the terms of that covenant. So it is, we must teach; "Except any one be born of water and of the Spirit, he cannot enter into the kingdom of God." By the terms of the covenant: no promise of salvation to the unbaptized! Again: "Except ye eat the flesh of the Son of Man, and drink his blood, ye have no life in you." No promise of salvation to the non-communicant! Again: "Whosoever sins ye remit, they are remitted unto them; and whosoever sins ye retain, they are retained;" and, "He that despiseth you, despiseth me, and he that despiseth me, despiseth him that sent me." No warrant, then, to any one to think he has a share in the gospel covenant, if he despise God's ministry, and forsake his Church. Without these, *where* are the valid sacraments? Without these, *where* are the channels of saving grace? Without these, *where* are the sure promises of the covenant? Alas! for the hardness of heart and unbelief of this our day, and this our country! Are such indeed God's ways? are such his words? are such his works? (Yea, "He worketh, and no man regardeth.") But is it not written (let us fear, lest it be for *us*), "Behold, ye despisers, and wonder, and perish: for I work a work in your days, a work which ye shall in no wise believe, though a man declare it unto you?" If God indeed be strict with the despisers,—with those who deride the power of his sacraments, and their necessity,—how shall we abide it? If he come, and make inquisition with us of our faith, and question with us of our unbelief, shall not some one take up his parable against us as a nation, and say, "Alas! who shall live when God doeth this?"

For indeed and in truth, if this *be* truth touching the nature of God's covenant, *who* are there among us that believe it? "*Who* hath believed our report, and to whom is the arm of the Lord revealed?" To a scanty few, I fear! Surely, comparatively to no more; even among those who have been baptized into the Church, and received the Church's teaching. Let any man try seriously any approach, (which is all I profess to have tried,) any approach to the dealing with a parish upon the belief and system, that of those who are not partakers of the sacraments of the Church—of those who, though baptized, are not communicants, we have no right to hope, according to the terms of the Gospel covenant; and not only how arduous and discouraging a work will he find before him, from the practical neglect of these things, but how direct and open-mouthed will be the opposition of many, and how utter the disbelief of how many more, ay, even among such as call themselves members of the Church. Alas! the truth is, (let me say it, however sad, however startling! it may be useful,) the real truth is, that the belief of there being a ONE HOLY, CATHOLIC, AND APOSTOLIC CHURCH, is almost gone from among us! The belief in ONE BAPTISM FOR THE REMISSION OF SINS, is almost gone from among us! The belief in the REAL POWER OF THE SACRAMENTS is almost gone from among us! The belief of there being ANY CHRISTIAN PRIESTHOOD, and any *value* in it, as such, is almost, (nay, among the mass,) quite gone from among us! Alas! how many of our people do not believe these things; will not endure them to be said; will risk their souls upon the chance of their being false; will sooner condemn the "quod semper, quod ubique, quod ob omnibus" of the Church for 1500 years, as an idle fable, than give the least reception into their hearts of such doctrines. And alas! even among *us* ourselves, the Christian ministry, there is, as men phrase it, difference of opinion. Instead of unity of sentiment, (rather, we should say, the one faith, once delivered,) there is "contention so sharp" that we all but depart, or do "depart one from the other:" and this gives the most frequent occasion both for enemies to blaspheme, and for the ignorant to be bewildered. Instead of our Church (i.e. by her ministers, and in her practical teaching: I speak not of her formularies,) with one mind and one mouth glorifying God, *these* bring railing accusation the one against the other; and *that* speaks well-nigh the language of Babel: and the consequence is, as might be expected, the lay people, if

pressed with the Church's doctrines, and the neglect of the Church's commands, (which are Christ's) find, of course, an easy solution of their difficulty by observing that many clergymen think otherwise, and attach no importance to these *views*, (as they call them) either wholly neglecting them, or even speaking against them. And if a man thus pressed with the objection of diversity of opinion now-a-days, and at home, appeal to the concordant sense of the early Church, and to the even now united and distinct voice of separate branches of the Church, on such points as the nature and power of the Christian priesthood, and Christian sacraments: the distinct voice, I say, of all the Church, except ourselves, (for our's, surely, practically in expression as heard among us, is uncertain and confused, though in itself it really have and bear the Catholic meaning,) if any one thus appeal to the voice of the Church at large on such points; a voice in some respects a more sure witness, as coming from those who are not agreed among themselves in others, what happens but the immediate cry of how many? "The man is false, and falleth away to the Chaldæans." Thus the truth is stifled and borne down by clamour, and the authority of the Church is yet more set at nought, neglected, and despised.

Many of those too, it is to be feared, who really are sound and orthodox upon the doctrines themselves, have yet been too fearful of stating the truth plainly, dreading the gainsaying of the multitude, or else the imputation of magnifying themselves, if they should endeavour to "magnify their office." Nor, I suppose, will any man maintain (not I myself *of myself*, God knoweth,) that he has kept clear of such offence, though he may have tried somewhat where his lot has been cast, to make these doctrines of the Church and sacraments, and salvation by the terms of a covenant, not according to each man's private feeling, or each man's private judgment, the basis on which to give the knowledge that might "make wise unto salvation." Yet *who* will dare to say other than that he has failed grievously, and fallen short miserably, both in the due development of such views, and in the effects which they are intended to produce: partly, no doubt, from his own deficiencies, but partly it may be also from lack of those weapons to carry on the warfare with which the Church intended to supply her soldiers; but which, alas! we are hardly allowed to wield!

For, let us notice next, the most serious loss the Church sustains in the almost total suspension of her discipline, of her power of inflicting censures. Surely it is not wholly our people's fault that they do not know the sinfulness of sin; nor our ministers' fault that they cannot make them believe it, when the weapon with which they should smite they are obliged to leave rusting in the scabbard, and the pen with which they should write on a man's forehead the penalty of his sin, (that he is excluded from the house of God, and cut off from Christian brotherhood,) is cast aside, and never used. Our people sin, and no note is taken of it! Our people sin, and the Church does not bear her witness against them! first, of private rebuke, next of openly censuring, and lastly of exclusion from her worship and sacraments, including herein (what would be a plain mark also for the living to see,) the refusing burial to those who refuse to seek reconciliation with her. She almost abdicates, as it were, her office of binding and loosing, and shall we wonder that men know not or care not whether they are bond or free? or, that with all ease and security they consider they are all free, though committing sin, which, in any period of effective discipline, would have received the solemn warning and most sure witness to its sinfulness, of excommunication. And how again, I say, does this work upon our familiar intercourse and daily teaching, and attempts to make our people believe the Church's doctrines? They regard not what we say, because we act as though we did not ourselves believe it. Those who *would* be excommunicate, were the canons but in half their measure carried out, who die perchance in open schism, or other notorious sin, *have* yet claimed for them the offices of the Church in their burial, and so, receiving these, the great witness of the Church against such courses of living, is rendered nugatory, or even worse. She even seems to witness *for* them. How, then, shall the mass of the careless and self-willed, be persuaded the Church thinks ill of the state in which those have lived, who have received no public censure, who have made their claim, and had it, at least passively allowed, to be buried, as her faithful children? Further still, regard this lack of discipline, as it affects the obedience of the people to the Church's voice, if she speak, or were to speak again, with her just authority. *Who* supposes that any real heed would be given to a censure of the Church, declaring such or such a man to be "rightly cut

off” from its fellowship, “and excommunicate,” so that he “ought to be taken of the whole multitude of the faithful as an heathen man, and a publican, until he be openly reconciled by penance?” *Who*, I say, supposes that such a sentence would now be regarded? *Are* such indeed regarded when rarely they *do* occur?

Or, again, look at the state of things among us, as to the confession of sin; I speak not of regular systematic confession; nor of self-sought confessions on the part of a disturbed and awakened mind, with the view to the benefit of absolution, together with ghostly counsel and advice; but merely with regard to such points as the Christian priest feels it often necessary to enquire into, lest a man *wholly forget his sins*, and so, *wholly forget to repent of them*. What is the awful result at which we arrive here also. Why, so entirely are people unused to be charged with their sins; so entirely are they accustomed to be let *remember* what they please, and let *forget* what they please, that they are only too apt consider all such helps to self-examination (I mean when it comes to particulars) to be an unwarrantable intrusion: at least this would be so, were the thing much attempted: and at any rate, so wholly are they used to justify themselves, and bent upon doing it, and determined to do it, that it sometimes requires the greatest caution and circumspection before we can believe even a dying man’s account of his previous life. Men will confess indeed what is notorious; what they know is known; but where they think a matter hidden, there they will deceive. Alas! I fear, people will speak untruly, even when spoken to most solemnly on such points. They will speak untruly to God’s minister. They will speak untruly to him on their sick bed. They will speak untruly even on their death-bed. They will speak untruly, I fear, even when *they know* it is their death-bed. They will desire to receive the Holy Communion, without having spoken the truth, but whilst persisting in their lie. I do not say such extreme things are common, or wholly attributable to any condition of want of discipline, but I am certain they exist, and I do fear they are much owing to our having no system of discipline, by which in health, persons are made aware, that the priest of God is in any wise to be had recourse to, as an adviser, and ghostly counsellor, or that he has any thing to do with their sins, or practically with the mode of remitting them in the name of God. So

the fear and shame attendant on speaking to any one whom they have never considered in his true relation to their sin, and to their souls, and with whom, it may be, they have always had the natural desire to stand well, as with other respectable persons in their parish; these things overpower all other considerations, even in sickness and in death; and we not only very scantily attain to true accounts, but have hardly even the power to keep back from communion those who we may feel sure are thus attempting to deceive us.

Now I think it is plain, these defects rest not entirely (surely we may say, not chiefly) on individuals. What is, as a nation, our great reproach, is, as individuals, our best excuse. The fault lies in our system: in that practically worked and working system which we have among us. We have well-nigh no weapons to fight with—and we wonder that we gain no victory. We have no means to make people believe the Church system, as it exists in theory, is true, or is important, and we wonder men neglect the sacraments. We cannot grapple with the wants of our people;—hardly with the cravings of the earnest-minded on the one hand, and not at all adequately with the mass of irreligion, infidelity, and schismatical proceeding on the other.

These are but a few thoughts, on a small part, of a most large and painful subject.

But truly, “enough,” it may be said, “we have of [ministerial] trials and discouragements. Every one knows it. To what end then, merely to enumerate, and bewail them? Where, rather is the remedy; and what is the drift of these observations?”

I will very briefly address myself to this point, before I conclude.

First, then, surely, these things being so: it is well to know them. If they are so, we have need of *patience*, but surely we have need also of *fear*. In the days of Jehoiachim, King of Judah, when iniquity abounded, and wickedness came to that pass, that the Word of the Prophet’s Roll, was not honoured, but “cut with the penknife,” and “burned in the fire,” what was even the additional sign of the hardness of heart then prevailing? When this was done, “yet *they were not afraid*, nor rent their garments: neither the king, nor any of his servants

that heard all these words.” The utmost that was done was only this:—that “Elnathan, and Delaiah, and Gemariah, made intercession to the king, that he would not burn the Roll, but he would not hear them.” And, if now in our day our evil state be such, that, as I have said, if we do not discard, yet we much disbelieve God’s teaching; following any teacher of heresy or schism, whom we please, or following just the rule of our own private spirits; if thus doing, we have lost practically from among us, that is, from among the great bulk of our people, the belief of there being any Christian priesthood: the true doctrine of the nature, power, and importance of the sacraments: (I speak not of places where, under peculiarly advantageous circumstances, Catholic truth has been more closely brought home, but of the general state, if you “numbered the people” throughout the land, in our dense city populations and crowded manufacturing towns; nay, in our wild rural districts and sequestered villages also,) if throughout the country generally our evil state be such, that not one in a hundred of our population ever dreams of coming to communion; if, again, when we, as God’s ministers; press upon them their duties, and privileges in such matters, speaking plainly, boldly, and without circumlocution the Church’s language; if then “bye and bye they are offended;” if, being offended, they will, as it were, excommunicate themselves, *and think nothing of it*; if, indeed, we seem to be living especially in that time and place where men “will not endure sound doctrine,” surely there is need of *fear*! yet, for all this, *where* are our fears? *where* are our lamentations? *where* are the signs of our repentings! Nay, on the contrary, we have *not* feared; we have *not* mourned; we have *not* humbled ourselves; rather we have boasted, and been puffed up, as if we were better than our neighbours! Oh! I ask again, where indeed are our prayers; where our sorrows; where our fastings, for the sin and misery of our state? Where are our “supplications offered up with strong cryings and tears unto him that is able to save us,” with the hope “that we may be heard *in that we fear*.” “Mine eye runneth down with rivers of water,” says the prophet, “for the destruction of the daughter of my people.” “Oh! that my head were waters,” he says again, “and mine eyes a fountain of tears, that I might weep day and night for the slain of the daughter of my people.” But, alas! is it so with us? Rather is it not—that we are *not* humbled: we are *not* ashamed: we are *not*

alarmed. We are in evil case, but we see it not. We are in awful blindness; and yet so blinded, we find not our want of eyes. We are dull and heavy with sleep, yet so inapprehensive, that we think ourselves in light and vigour: we cannot see the signs of woe, nor hear the sounds of warning!

And where are our means or hope of our remedy? The remedy for such a state of things? *Surely, if any where, first, in being awakened, next in humiliation, and then in patience.* We “have need of patience,” and all other things will fail without it. But with humility, and with patience there may be hope; “a hope that maketh not ashamed.” Oh! if we seek God rightly, “surely there must be hope in thine end, that thy children shall come again to their own border,” as saith the prophet.

If I humbly may, without going through other hopes, or ways of remedy, however nearer, more immediate, and more depending upon ourselves, (such for instance as the remedies that might come from the godly gathering together again of the Church’s National Synod); without dwelling upon such topics, I will direct your thoughts to one source of consolation and hope of remedy yet wider, more general, and more complete; more powerful and direct (if ever it please God to grant it us) than any other means, to salve our wounds, and restore the efficiency of our Church’s working for the salvation of souls. Surely there may be hope to heal our distractions, and to restore true faith and doctrine among us, (nay, even to do *more* than this,) by a general council of the Church, if it please God to allow such to be again assembled. I know not what should forbid the hope. A general council of Christendom, East and West together might do such things for us, that “then should our mouth be filled with laughter, and our tongue with joy;” till it should “be told out among the heathen, the Lord hath done great things for them whereof they may” well “rejoice.”

Why should we not pray, and hope, that universal Christendom might meet again in council. I do not mean now, at once. I fear we are not fit for such a council, if it came. We should refuse to submit to it. We should despise its authority; and too probably, at once repudiate its decrees. If it were to come so, and we so to receive it, we might only be filling up the measure of our iniquity. But, *if* we prepare for it, God

may give it us, when we can receive it in a better temper. If we prepare for it, hoping for it, longing for it, and being ready to submit rightly, and give due weight to it, God may make it our remedy, and the healing of all our distractions, heart-burnings, and disorders. We may become again a united people among ourselves: or even if all the nation *will* not be re-absorbed into the Church, yet we who are of the Church may be again of one mind, and *re-union in Christendom might follow!* Oh! if this were so indeed, “who should express the noble acts of the Lord, or shew forth all his praise?” “Then,” indeed, “should the earth bring forth her increase, and God, even our own God should give us his blessing. God should bless us, and all the ends of the world should fear him!” Oh! then, let him who would deserve well of the Church of England, pray yet for such a day; and set forward constantly and continually the mind and temper which shall first long for, and next be prepared for, such a council. The temper which would not presumptuously reject, but gladly accept such appeal to smooth our differences and sharp contentions, is perhaps our best defence against the danger, or the charge of schism; and when we are in such a mind, let us not fear, but rather let us humbly hope, that the general council will come. Nay, be not impatient: be content to wait for years upon years, seeking to grow towards it, in love, and preparation for it. Perchance it would be of the Lord, even were it now ordered by authority that one day weekly, besides the Church’s continued rule of a weekly fast, should be set apart; (and gladly by many would it be observed) as a day of humiliation, and of prayer: if it were appointed, for seven, for fourteen, nay, for forty years, (it may be needful a generation should pass away, as was the case in those that came up out of Egypt;) whilst we earnestly continued to supplicate and beseech our God that it might please him thus to grant us peace and consolation: that what we lack might be restored to us, even “the years which the locust, and the caterpillar, and the canker-worm have eaten;” a renewed strength, a good courage, a sound discipline, a believing heart; surely all things are possible with him, “He bloweth with his wind, and the waters flow.” To HIM let us pray, and in HIM let us trust, who can “renew our strength as eagles:” who is “mighty to save:” “who only doeth wondrous things:” who can “make a way under us for to go,” even when there seemeth no path, and disentangle all the knots,

even of men's evil hearts, and evil passions. But "*we have need of patience.*" "Let us run *with patience* the race that is set before us." "*In our patience* possess we our souls." In this spirit, therefore, let us then thank God, and hope in God, and proceed upon our way!

FINIS.

C. Whittingham, Chiswick.

FOOTNOTES.

[6] Second Letter, p. 4.

[8] The above was written several weeks before Mr. Maskell took the final step which he has since taken. Possibly many will point to this, and wonder at my blind credulity, as it will seem to them. But, I neither cancel, nor wish to cancel, any part of my remarks. All I will venture to do, is to add (and I trust I shall have Mr. Maskell's forgiveness, under these peculiar circumstances, for quoting from a private letter) one or two extracts which may perhaps help to justify what I have said, and do him at the same time no wrong. In a letter to me, bearing date, "Easter Eve, 1850," not long before the publication of the "Second Letter," he says—"I wish, for my own present comfort, that I had your *now* faith, hope, trust and determination; but I have *not*—yet let me think that we may yet be, as we ever have been, true friends; you will not repudiate me, even if I do find that for a while we must be separate in communion; for you will know, surely, that I am not one who 'would change his faith like a garment unsuited to the clime in which he dwells.' . . . All this is sad enough—sad for it will break up many ties near and very dear. . . . Well! it is God's will—now one, now another; here a few; there many: as He sees fit, so He calls, and so we *ought* to obey. . . . I am very, very sad: sad especially, because of seeming to desert and forsake one acting so nobly and so bravely as my Bishop. *He* has no doubt about the Church of England: yet *I* know that, at whatever cost and pain, God's truth alone must be fought for. Yet for all this, do not conclude that I have *decided*:—only, you will be prepared to know that the first step has been taken, I mean resignation—and with it my second letter. . . . Pray do not judge me harshly. . . . What an Easter! yet one day there will be the rising of the morning of the resurrection: may God grant to you and me, and all whom we love, so to do our duty here towards him, and to his Church, and to the faith, that we may be *glad* to look upon the brightness of those beams. Here all seems trouble and anxiety and fear; sorrows, and regret,

and parting. I have had sorrows before this: scarcely any, nay NONE, (*can* it be true?) more bitter. There is now responsibility; before, endurance only. God ever bless you, my dear Friend, ever yours affectionately—W. M.” And in a letter somewhat later, written I believe on my first intimating my intention to publish a second letter to him: he says—“Clear up these doubts; not one or two, but generally the subject of the dogmatic teaching; say, especially, with reference to justification and the Holy Eucharist, and no man will bless you more fervently than I shall.” Those who do not know Mr. Maskell may judge him hardly. I trust I shall never have that guilt upon my conscience, however I differ from him, or combat his conclusions. And perhaps some even of those who may have been least indulgent to him heretofore, will not now so much question my remarks, and may possibly believe I know him at least as well as they do.

[10] Second Letter, p., 77.

[12] Second Letter, App., p., 85.

[13] Second Letter, App., pp., 85, 86.

[14a] Letter to Maskell, p. 7.

[14b] Ibid. pp. 14, 15.

[15] See Appendix A.

[18] Second Letter, pp. 78, 79.

[20] Second Letter, p. 19, note; p. 75.

[21] Judgment of the Privy Council, p. 18.

[22a] Judgment of the Privy Council, p. 18.

[22b] Appendix B.

[23] Lord Campbell’s first letter to Miss Sellon, Guardian, April 17th.

[24] Lord Campbell in his second letter to Miss Sellon, (Guardian, Ap. 17,) has these words, which are likewise remarkable. “No reproach can be brought upon her (the Church of England) by a misconstruction of her articles and formularies; and it must be a very slight reproach to her if she

has omitted to denounce one false doctrine as heretical, considering that no Christian Church has professed to settle dogmatically all points of doctrine.” The beginning of this sentence is a tolerably bold assumption, I think, unless Lord Campbell will allow a few words to be supplied, to explain what I trust he will feel to be an omission; that no reproach will come upon her, by a misconstruction of her formularies, by that court, *if only with all her heart and soul, she set herself to correct it, and cast the misconstruction from her*: but the latter part of the above quotation seems to admit of no palliation by any possible addition, and is surely a most marvellous slip for a mind of any acuteness to have made. “A *very slight reproach*,” Lord Campbell says it must be, “*to have omitted to denounce one false doctrine as heretical*;” without apparently a single thought as to *what* the doctrine in question may be. That it is an article of the creed which is expunged, and therefore denied, appears never to have crossed his Lordship’s mind, as worthy of the slightest consideration. “It is *but one* doctrine out of many:—reckon them up by tale, and you will never miss *one*:—no Churches settle *everything*:—why then so uneasy?” What hope, what possible chance that a mind constituted so as to be *able* to write such a sentence, can ever have appreciated, or believed, or understood, the meaning or importance of dogmatic teaching at all. Had he lived in the time of the Arian controversy, could the writer of the above sentence have believed it was possible any matter of moment was, or could be, involved in so minute a distinction as in the two letters of the ὁμοούσιον, that it *could* be worth the toil of Athanasius’s life, to contend for so slight a point? and repay all the labours and persecutions of a host of saints to win it? and in truth Lord Campbell’s method of arguing, or consolation to an afflicted Church, would apply just as much, had it been the doctrine of the atonement, or of the divinity of the Son of God, which had been brought in question by Mr. Gorham’s examination. “No need to settle every thing. So *one* open question can be no great matter, and no great reproach!”

[\[27a\]](#) Judgment, p. 8.

[\[27b\]](#) Judgment, p. 9.

[\[28a\]](#) Bp. of Exeter’s Letter, p. 52.

[\[28b\]](#) Efficacy of Baptism, p. 85.

[28c] P. 88.

[28d] P. 112.

[28e] P. 113.

[29] P. 197.

[30a] Judgment, p. 14.

[30b] Ibid. 14.

[31] A letter in the Guardian, of March 13th, signed “Solicitus,” has placed this statement in a very intelligible point of view. As it is brief I will venture to quote it.

“It has been asserted by the Privy Council that the baptismal and burial offices are parallel cases:—we *hope* that the child is regenerate: we *hope* the dead brother is to rise to eternal life?

“But are the cases parallel? Is it not a notorious fact, that at the Savoy Conference in consequence of the Puritan objections, the words ‘in sure and certain hope of resurrection to eternal life’ were altered into ‘in sure and certain hope of *the*’ (i.e. the general) ‘resurrection to eternal life.’ And on the other hand when the words ‘it hath pleased thee to regenerate this infant by thy Holy Spirit,’ were objected to by the same parties (on the ground that the ‘regeneration of every child that is baptised,’ is at least’ a ‘disputable point,’) no alteration was made. How came this to pass? Surely the Church of England wanted to show that her language with regard to the dead was only that of charitable hope; but that she held the doctrine of regeneration in baptism absolutely and without qualification.—Yours, faithfully,

“SOLICITUS.”

As I have said, the notion of the general resurrection being the object of the hope alluded to, appears never to have presented itself to the mind of the Court. If it did not; where was their ability? If it did; where their honesty; so entirely to suppress all mention of it, and *force* this service to one

construction only, in order to open the door to many constructions in another?

[33] Faery Queen, Book I. C. IX. St. 43.

[34a] See Appendix C.

[34b] Judgment of Sir H. J. Fust, p. 48.

[34c] Office for Private Baptism of Infants.

[35a] Office for Private Baptism of Infants. See also Appendix D.

[35b] Badeley's Speech, pp. 58, 59.

[36a] Judgment, p. 16.

[36b] Ibid.

[37a] See Bishop of Exeter's Letter, p. 88.

[37b] Judgment, p. 17.

[38] Judgment, p. 17.

[40] Rubric in Office for private Baptism.

[42] It is obvious, *sanctified*, or *hath sanctified* would not express the sense intended; just as the Holy Ghost who *comforted*, or *hath comforted*, would not convey the meaning of the words "*The Holy Ghost*" (who is,) "*the Comforter*."

[46] "In any ordinary set of circumstances, in the case of an enclosure, of a railway or matter of property, we should have no question whatever that the doubt of any one on the bench would have made further enquiry desirable. I should instantly have agreed, &c." Lord Denman's judgement in the Hampden case; Report of the Case of the Right Rev. R. D. Hampden, D.D. by R. Jebb, Esq. p. 495. See also Appendix E.

[48] Appendix F.

[50] Maskell on Absolution, p. 49.

[51] Maskell's Doctrine of Absolution, pp. 49, 50.

[52] Maskell's Doctrine of Absolution, pp. 50, 51.

[54] Maskell's Second Letter, pp. 41, 42.

[59a] It may be worth while to observe here also how entirely this principle is acknowledged in the foundations of English law. I should indeed soon get beyond my depth, were I to attempt an analysis of this part of the subject; but I gladly avail myself of the labours of another whose pen and legal knowledge the present crisis has put in motion, to bring into juxtaposition with my own observations, one or two of the acknowledged maxims by which the construction of legal documents among us is governed. Mr. Chambers, ^[59b] in his recent letter to the Bishop of Salisbury, has several times referred to this subject. Thus he quotes Mr. Dwarris (himself quoting Lord Coke):—

“To know what the common law was before the making of a statute, whereby it may be seen whether the statute be introductory of a new law, or only affirmatory of the common law, is the very lock and key to open the windows of the statute. For it is not to be presumed that the Legislature intended to make any innovation upon the common law further than the case absolutely required; the law rather infers *that the act did not intend to make any alteration other than what is specified, and beside what has been plainly pronounced*: for if the Parliament had had that design, *it is naturally said they would have expressed it.*”

^[60a]

It appears to me that in some sense, i.e. in reference, at any rate, to posterior legislation, *the pre-reformation doctrines* may be called the *common law* of our Church; and if so, we shall readily see the analogy of the civil law, and the authoritative declaration of its rule of construction of statutes, is, that no alteration is made by subsequent enactments, *but what is specified*, or *beside what is plainly pronounced*;—that is to say, what is not “openly, plainly, and dogmatically” altered, remains as it was before. To the same purpose exactly Mr. Chambers adds another passage, stating again “the canon of construction appropriate to statutes,” and again quoting Mr. Dwarris:—

“Affirmative words do not take away the common law, former custom, or a former statute.” [\[60b\]](#)

And again, a little further on, citing further authorities:—

“When particular words are followed by general ones, the latter are to be held as applying to persons and things of the same kind only which precede,” [\[61a\]](#) so that “if a particular thing be given or limited in the preceding parts of a statute this shall not be altered by the subsequent general words of the same statute;” [\[61b\]](#) an observation surely of much weight to show how definitely any part of a statute must be examined, and how directly mentioned in order to its repeal, according to the usage of English law. Once more, to quote but one further passage to the same effect:—

“Unless the intention be apparent for that purpose, the general words of another and later statute shall not repeal the provisions of a former one.” [\[61c\]](#)

Such is the testimony from rules of English law to the principles I desire to maintain, that the pre-reformation dogmatic teaching remains to us, except where it has been “openly, plainly, and dogmatically” repealed.

I need hardly say, these extracts very inadequately represent the force of Mr. Chambers’s argument. A reference to the pamphlet itself will well repay the trouble.

[\[59b\]](#) A Review of the Gorham Case, by John David Chambers, M.A. Recorder of New Sarum.

[\[60a\]](#) Chambers’ Review, pp. 23, 24. Lord Coke, 2 Ins. 30; 3 Rep. 31, per Dwarris, 564.

[\[60b\]](#) Chambers, p. 34. Dwarris, 605.

[\[61a\]](#) Chambers, p. 44. Sandeman v. Breach, 7 B. and C. 96.

[\[61b\]](#) Ibid. Stanton v. University of Oxford, 1 Jon. 26.

[\[61c\]](#) Ibid. p. 45. Gregory’s Ca. 6 Rep. 196; Dwarris, 514.

[63] Speech of Edward Badeley, Esq. pp. 95–97.

[64] Badeley, p. 99.

[66a] Badeley's Speech, pp. 101, 102.

[66b] Ibid. p. 102.

[69] The objection to be drawn from the sentence of the court in the case in question, with reference to Mr. Badeley's argument from antiquity, and the teaching of the Church previous to the reformation, is even of less real weight than I have here implied; because that court does not appear at all to have applied itself to the principle for which Mr. Badeley contended. It seems rather to have forgotten its existence, than seriously to have examined and condemned it; and though it may be said, perhaps, that such passing it over affords a *presumption* of its unsoundness, yet this, I think, is *all* that can be made out of its treatment by that tribunal. Whatever, therefore, be the *presumption*, it is *certainly no proof* and no *sentence* as to the unsoundness of the position taken up by Mr. Badeley even for the purpose of the particular case, much less of its unsoundness generally. So many other causes may be conceived to have operated upon the Judges' minds in coming to the conclusion they did; for instance, they *may have* admitted Mr. Badeley's principle, but thought the doctrine in question, as maintained by the Bishop of Exeter, was not sufficiently identified with the universal teaching of the Church; or that that very teaching was itself vague; or that posterior documents of the English Church absolutely contradicted the earlier doctrine; (however improbable, such reasons are conceivable as influencing the actual decision;) and thus we are not warranted in supposing there is any sentence unfavourable to the soundness of Mr. Badeley's principle of catholic tradition, by the proceedings of this court of appeal in reference to it.

I am persuaded no lawyer will contradict what I have here said, as to secular affairs, and I see no reason why the same measure should not be dealt forth in causes ecclesiastical and spiritual. I mean, that no lawyer will contradict the principle, that because a certain argument or line of defence has not been taken into consideration, or not admitted as conclusive upon the side on which it is advanced in any given instance, it should be looked upon as judicially condemned, or not be used again if occasion should

arise. If even the reasons of a court of law on which it founds its sentence are really no formal part of the judgment, much less can the mere overlooking or ignoring a particular line of argument, disable or disfranchise that line of argument, so as to render it for ever unavailable.

[71] Eccles. Polity, book viii. ch. ii. § 17, vol. iii. pp. 447–8, Keble’s Edit. See also Appendix G.

[75] Coke’s 4th Inst. p. 323.

[76] 25 Henry VIII. c. 19, § 7.

[78a] This, however, in the particular case, is an almost impossible supposition, because it was from the petition of the clergy themselves, however obtained, that the scheme emanated, and in accordance with its prayer that this board of two-and-thirty persons was to be appointed. 25 Henry VIII. c. 19, s. 1. See also Gladstone’s Letter to the Bishop of London, p. 9.

[78b] Gladstone, p. 9.

[78c] Ibid. p. 62.

[82] Badeley, p. 99.

[87] See p. 19.

[89] Second Letter, p. 42.

[90a] Second Letter, p. 57.

[90b] Ibid. p. 61.

[91] Second Letter, p. 63.

[92a] Second Letter, p. 72.

[92b] “As regards the Church of England in particular, it may be that the so-called reformation contained—perhaps unknown to the original promoters of it—poisonous seeds of evil, bringing in certain though slow decay; and that either new principles were then secretly established, which in their development would most surely lead to the destruction and

confusion of essential truths, or old principles were, in ignorance, given up, which the gradual course of time would prove to be necessary, because they lie at the very foundation of Christianity itself. Or, once more, it may be with portions of the Church Catholic as with the vine, her mysterious type. ‘I am the vine, ye are the branches,’ were the words of our Blessed Lord, speaking of His body, the Church, of which he is himself the Head. And we may well conceive how a branch, full of sap and vigour, may be severed from the stem, and yet for a period—longer or shorter—still continue to put forth leaves, and perhaps the blossoms of fruit also; nevertheless, cut off all the while, and severed; requiring time to die, but death itself inevitable at last.”—Second Letter, pp. 72, 73.

[101] Maskell’s Doctrine of Absolution, p. 291.

[102] Letter, p. 16.

[105a] Letter in Guardian, March 20th, 1850.

[105b] Guardian, May 8th, 1850.

[106] Bishop of Exeter’s Letter, p. 90. I am not unaware that Mr. Keble has recently further explained his views on this matter in a second number of his “Church Matters in 1850;” and of course I am not forgetful that the Bishop of Exeter has repeated his protest and declaration on the point: but as these authorities serve only to confirm and strengthen the substance of what I had previously noted down, I do not see any occasion to withdraw or alter it.

[112] It may be useful to observe here, that nothing affecting our Church at large seems to me to result from the correspondence published in May last, between the Archbishop and Mr. Maskell. However unsatisfactory the answers given by the Archbishop to Mr. Maskell’s queries may be deemed, they do not, as it appears to me, commit the *Church of England* to anything, but *himself* only. I cannot but think his Grace is quite right when he says he cannot be understood, in an unofficial correspondence of that kind, to speak for the Church, but only for himself. Therefore, however his answers may serve as evidence of his own opinion, and be a help in determining how far he stands committed to having, personally, little or no dogmatic teaching on the subjects brought under his notice by Mr. Maskell; however, therefore,

those answers may be valuable in the settlement of the question whether we are morally bound to withdraw from communion with his Grace, they prove nothing as to our Church at large, and can commit her to nothing unless accepted, confirmed, and adopted by herself; that is to say, they have no bearing at all in reference to the argument of this letter, and being unauthoritative statements, are no refutation of any proofs I may have given of our rule of dogmatic teaching. If the intentions of our reformers are not to be taken as evidence of the meaning of our various formularies, much less the construction of them by an individual archbishop.

[116] Neale's Few Words of Hope, p. 22.

[120] No doubt there are persons whose habitual view is so absorbed in the majesty of human law, that they appear to forget there is any higher law with which we have to do. "Sir, I have had the honour to receive your letter, in which you intimate to me your intention of violating the law," was an answer of some celebrity in its day. Perchance the question had not presented itself to the writer's mind,

"What law is that?
'Tis not the law of God, nor yet *above* it."

[122] Convocations and Synods, by an Anglican Layman, p. 6.

[124] Convocations and Synods, p. 11–14.

[125a] Archdeacon Manning's Letter, p. 23.

[125b] Ibid. p. 41.

[126] Manning, p. 23.

[127] Bramhall's Works, p. 141. See also Manning's Sermon on the Rule of Faith.

"The Church of England so far from submitting either the rule, or her decisions according to the rule, to the judgment of her individual members, will not submit them even to the judgment of particular Churches, or to any tribunal less than that to which all particular churches are subject, that is, a general council, of which either the

members shall truly *represent* the Church Catholic, or the decrees be universally *received*. * *

“We therefore no more submit the doctrinal decisions of the Church to the judgment of individual minds, than the canon of Scripture itself. We do acknowledge an authority higher than either the Church of England, or of Rome in particular. What hinders an appeal to that tribunal, Dr. Wiseman knows as well as we. But if such a council, truly general, freely assembled, should meet to-morrow, the rule of its decisions would be, ‘non sua posteris tradere, sed a majoribus accepta servare.’”—Pp. 25, 26, note.

[\[128\]](#) See Appendix H.

[\[131\]](#) Second Letter, p. 80.

*** END OF THE PROJECT GUTENBERG EBOOK A SECOND
LETTER TO THE REV. WILLIAM MASKELL, M.A. ***

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